



## **Southwestern Community College District**

### **Continuing Disclosure Filing For the Period Ending June 30, 2025**

Omar Gutierrez  
Interim Assistant Superintendent/Vice President  
Business & Financial Affairs  
Southwestern Community College  
900 Otay Lakes Road  
Chula Vista, CA 91910  
[ogutierrez@swccd.edu](mailto:ogutierrez@swccd.edu)

Joanna Bowes  
Managing Director  
KNN Public Finance  
2001 Addison Street, Suite 100  
Berkeley, CA 94704  
[jbowes@knninc.com](mailto:jbowes@knninc.com)



## Table of Contents

---

|           |                                                                         |          |
|-----------|-------------------------------------------------------------------------|----------|
| <b>A.</b> | <b>Introduction</b>                                                     | <b>1</b> |
| <b>B.</b> | <b>Annual Report</b>                                                    | <b>2</b> |
| 1.        | Audited Financial Statements                                            | 2        |
| 2.        | Current Fiscal Year Budget                                              | 2        |
| 3.        | Enrollment - Full Time Equivalent Students                              | 3        |
| 4.        | Assessed Valuations of Taxable Property Within the District             | 4        |
| 5.        | Secured Tax Charges, Delinquencies and Collections                      | 5        |
| 6.        | Information Relating to the District's Outstanding Bonded Debt          | 6        |
| <b>C.</b> | <b>Official Statement Covers and Continuing Disclosure Certificates</b> | <b>7</b> |

## A. Introduction

The Southwestern Community College District ("District") hereby provides the continuing disclosure annual report pursuant to the Continuing Disclosure Certificates in connection with the following financings for the fiscal year ended June 30, 2025 ("Annual Report"):

| CUSIP-6 | Dated Date | Issue                                                              | Original Par Amount |
|---------|------------|--------------------------------------------------------------------|---------------------|
| 845389  | 10/13/2004 | General Obligation Bonds, Election of 2000, Series 2004            | \$49,353,974.05     |
| 845389  | 6/16/2011  | Election of 2008 General Obligation Bonds, Series C                | \$68,730,371.35     |
| 845389  | 9/7/2016   | 2016 General Obligation Refunding Bonds, Series B (2019 Crossover) | \$84,335,000.00     |
| 845389  | 11/30/2017 | Election of 2016 General Obligation Bonds, Series A                | \$140,000,000.00    |
| 845389  | 8/5/2020   | Election of 2008 General Obligation Bonds Series 2020E-2           | \$23,140,000.00     |
| 845389  | 8/5/2020   | Election of 2016 General Obligation Bonds Series 2020B-2           | \$28,515,000.00     |
| 845389  | 8/5/2020   | 2020 General Obligation Refunding Bonds (Federally Taxable)        | \$56,530,000.00     |
| 845389  | 3/24/2021  | Election of 2016 General Obligation Bonds Series 2021C             | \$46,000,000.00     |
| 845389  | 3/24/2021  | 2021 General Obligation Refunding Bonds (Federally Taxable)        | \$150,970,000.00    |
| 845389  | 11/10/2021 | Election of 2008 General Obligation Bonds Series 2021F             | \$73,620,000.00     |
| 845389  | 11/10/2021 | Election of 2016 General Obligation Bonds Series 2021D             | \$184,000,000.00    |
| 845389  | 8/5/2025   | Election of 2024 General Obligation Bonds Series 2025A             | \$120,000,000.00    |

## B. Annual Report

The following Annual Report is submitted pursuant to the Continuing Disclosure Certificates for the financings referenced in Section A. Each disclosure item is listed below with the required information or reference to the location of the required information. For background information on each item, please refer to the official statement for each issue. Cover pages are included in Section C.

### 1. Audited Financial Statements

Fiscal Year 2024-2025 Audited Financials have been filed separately to EMMA. Please refer to this document for the following information:

- State funding information for the prior fiscal year can be found on pages 9, 15 and 16.
- Outstanding indebtedness can be found on page 12, under Note 7 starting on page 32, and under Note 15 on page 56.
- Full Time Equivalent Students can be found on pages 6 and 74.

### 2. Current Fiscal Year Budget

The Adopted Budget for Fiscal Year 2025-2026 has been filed separately to EMMA.

Summary financial information on revenues, expenditures and fund balances for the District's General Fund reflecting the Adopted Budget for the current fiscal year and prior year actuals is shown in the table below:

| Description                         | UNRESTRICTED SUBFUND |                    | RESTRICTED SUBFUND |                   | TOTAL              |                    |
|-------------------------------------|----------------------|--------------------|--------------------|-------------------|--------------------|--------------------|
|                                     | Actual               | Budget             | Actual             | Budget            | Actual             | Budget             |
| <b>REVENUES:</b>                    |                      |                    |                    |                   |                    |                    |
| Federal Revenues                    | 54,050               | 91,000             | 8,940,222          | 5,238,907         | 8,994,272          | 5,329,907          |
| State Revenues                      | 106,705,756          | 108,281,365        | 44,743,304         | 31,315,416        | 151,449,060        | 139,596,781        |
| Local Revenues                      | 54,496,643           | 54,741,617         | 3,686,526          | 3,381,486         | 58,183,169         | 58,123,103         |
| <b>Total Revenues</b>               | <b>161,256,449</b>   | <b>163,113,982</b> | <b>57,370,052</b>  | <b>39,935,809</b> | <b>218,626,501</b> | <b>203,049,791</b> |
| <b>EXPENDITURES:</b>                |                      |                    |                    |                   |                    |                    |
| Academic Salaries                   | 64,400,434           | 65,075,675         | 8,275,260          | 5,966,013         | 72,675,694         | 71,041,688         |
| Classified Salaries                 | 31,406,914           | 38,741,663         | 13,268,511         | 11,926,943        | 44,675,425         | 50,668,606         |
| Employee Benefits                   | 42,544,469           | 41,686,319         | 8,947,493          | 8,393,450         | 51,491,962         | 50,079,769         |
| Supplies and Materials              | 1,460,067            | 2,103,250          | 3,857,769          | 2,845,960         | 5,317,836          | 4,949,210          |
| Other Operating Expenses, Services  | 13,193,974           | 15,325,695         | 14,515,259         | 10,377,710        | 27,709,233         | 25,703,405         |
| Capital Outlay                      | 380,987              | 0                  | 1,194,648          | 332,815           | 1,575,635          | 332,815            |
| <b>Total Expenditures</b>           | <b>153,386,845</b>   | <b>162,932,602</b> | <b>50,058,940</b>  | <b>39,842,891</b> | <b>203,445,785</b> | <b>202,775,493</b> |
| <b>Excess /(Deficiency)</b>         | <b>7,869,604</b>     | <b>181,380</b>     | <b>7,311,112</b>   | <b>92,918</b>     | <b>15,180,716</b>  | <b>274,298</b>     |
| <b>Other Financing Sources</b>      | <b>40,090</b>        | <b>0</b>           | <b>2,934,880</b>   | <b>2,988,148</b>  | <b>2,974,970</b>   | <b>2,988,148</b>   |
| <b>Other Outgo</b>                  | <b>3,503,620</b>     | <b>3,798,193</b>   | <b>10,245,992</b>  | <b>3,081,066</b>  | <b>13,749,612</b>  | <b>6,879,259</b>   |
| <b>Change in Fund Balance</b>       | <b>4,406,074</b>     | <b>(3,616,813)</b> | <b>0</b>           | <b>0</b>          | <b>4,406,074</b>   | <b>(3,616,813)</b> |
| <b>BEGINNING FUND BALANCE:</b>      |                      |                    |                    |                   |                    |                    |
| Net Beginning Balance, July 1       | 26,808,115           | 31,214,196         | 592,568            | 592,568           | 27,400,683         | 31,806,764         |
| Prior Years Adjustments             | 7                    |                    | 0                  |                   | 7                  |                    |
| Adjusted Beginning Balance          | 26,808,122           |                    | 592,568            |                   | 27,400,690         |                    |
| <b>Ending Fund Balance, June 30</b> | <b>31,214,196</b>    | <b>27,597,383</b>  | <b>592,568</b>     | <b>592,568</b>    | <b>31,806,764</b>  | <b>28,189,951</b>  |

Source: California Community Colleges Chancellor's Office 311 Report.

### **3.     *Enrollment - Full Time Equivalent Students***

| <b>Fiscal Year</b> | <b>Resident<br/>Total FTES</b> |
|--------------------|--------------------------------|
| 2016-2017          | 15,877                         |
| 2017-2018          | 13,318                         |
| 2018-2019          | 14,694                         |
| 2019-2020          | 14,800                         |
| 2020-2021          | 13,851                         |
| 2021-2022          | 12,307                         |
| 2022-2023          | 13,879                         |
| 2023-2024          | 15,658                         |
| 2024-2025          | 16,594                         |

Source: California Community Colleges Chancellor's Office FTES Report and Audited Financials.

Information regarding FTES for the current Fiscal Year 2025-2026 may be found in the Adopted Budget filed separately to EMMA or on the California Community College Chancellor's Office website. The Chancellor's website periodically publishes and updates Apportionment Reports, which contain FTES information.

<https://www.cccco.edu/About-Us/Chancellors-Office/Divisions/College-Finance-and-Facilities-Planning/Apportionment-Reports>

#### 4. *Assessed Valuations of Taxable Property Within the District*

| Fiscal Year | Local Secured    | Utilities     | Unsecured       | Total            | % Change |
|-------------|------------------|---------------|-----------------|------------------|----------|
| 2015-2016   | \$45,820,510,403 | \$399,962,367 | \$1,223,606,574 | \$47,444,079,344 | N/A      |
| 2016-2017   | \$48,434,630,174 | \$569,695,367 | \$1,193,533,841 | \$50,197,859,382 | 5.80%    |
| 2017-2018   | \$51,550,718,593 | \$663,287,367 | \$1,255,161,308 | \$53,469,167,268 | 6.52%    |
| 2018-2019   | \$54,585,199,185 | \$587,553,982 | \$1,311,577,562 | \$56,484,330,729 | 5.64%    |
| 2019-2020   | \$57,956,366,866 | \$597,653,982 | \$1,330,149,513 | \$59,884,170,361 | 6.02%    |
| 2020-2021   | \$61,248,829,409 | \$587,853,982 | \$1,470,180,147 | \$63,306,863,538 | 5.72%    |
| 2021-2022   | \$63,874,569,373 | \$613,253,982 | \$1,377,104,776 | \$65,864,928,131 | 4.04%    |
| 2022-2023   | \$69,332,412,829 | \$585,145,766 | \$2,048,123,956 | \$71,965,682,551 | 9.26%    |
| 2023-2024   | \$74,339,690,198 | \$570,732,766 | \$2,355,564,852 | \$77,265,987,816 | 7.37%    |
| 2024-2025   | \$78,946,019,402 | \$569,978,466 | \$2,509,022,967 | \$82,025,020,835 | 6.16%    |
| 2025-2026   | \$83,802,870,862 | \$562,327,006 | \$2,681,922,837 | \$87,047,120,705 | 6.12%    |

Source: California Municipal Statistics, Inc.

## 5. Secured Tax Charges, Delinquencies and Collections

| Fiscal Year | Secured Tax Charge <sup>(a)</sup> | Delinquent as of June 30 | % Delinquent as of June 30 | Collections as of June 30 | % Collection as of June 30 |
|-------------|-----------------------------------|--------------------------|----------------------------|---------------------------|----------------------------|
| 2015-2016   | \$21,877,858.71                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2016-2017   | \$23,213,159.62                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2017-2018   | \$24,618,845.37                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2018-2019   | \$25,893,102.62                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2019-2020   | \$27,385,565.05                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2020-2021   | \$28,834,263.88                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2021-2022   | \$30,254,117.28                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2022-2023   | \$32,996,114.25                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2023-2024   | \$35,237,169.54                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2024-2025   | \$37,257,434.98                   | (b)                      | (b)                        | (b)                       | (b)                        |

(a) 1% General Fund apportionment.

(b) San Diego County utilizes the Teeter Plan for assessment levy and distribution. This method guarantees distribution of 100% of the assessments levied to the taxing entity, with the county retaining all penalties and interest.

Source: California Municipal Statistics, Inc.

| Fiscal Year | Secured Tax Charge <sup>(a)</sup> | Delinquent as of June 30 | % Delinquent as of June 30 | Collections as of June 30 | % Collection as of June 30 |
|-------------|-----------------------------------|--------------------------|----------------------------|---------------------------|----------------------------|
| 2015-2016   | \$18,049,975.56                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2016-2017   | \$18,000,281.30                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2017-2018   | \$25,757,563.19                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2018-2019   | \$25,600,145.15                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2019-2020   | \$26,012,997.49                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2020-2021   | \$17,175,734.98                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2021-2022   | \$30,996,627.44                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2022-2023   | \$29,345,514.92                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2023-2024   | \$34,245,119.91                   | (b)                      | (b)                        | (b)                       | (b)                        |
| 2024-2025   | \$34,588,396.37                   | (b)                      | (b)                        | (b)                       | (b)                        |

(a) District's general obligation bond debt service levy.

(b) San Diego County utilizes the Teeter Plan for assessment levy and distribution. This method guarantees distribution of 100% of the assessments levied to the taxing entity, with the county retaining all penalties and interest.

Source: California Municipal Statistics, Inc.

## 6. *Information Relating to the District's Outstanding Bonded Debt*

| <b>Dated Date</b> | <b>Issue</b>                                                          | <b>Original<br/>Par Amount</b> | <b>Outstanding<br/>June 30, 2025</b> | <b>Outstanding as<br/>of EMMA Filing</b> |
|-------------------|-----------------------------------------------------------------------|--------------------------------|--------------------------------------|------------------------------------------|
| 10/13/2004        | General Obligation Bonds, Election of 2000,<br>Series 2004            | \$49,353,974                   | \$11,559,786 <sup>(a)</sup>          | \$10,127,469 <sup>(a)</sup>              |
| 6/16/2011         | Election of 2008 General Obligation Bonds,<br>Series C                | \$68,730,371                   | \$10,375,371 <sup>(a)</sup>          | \$10,375,371 <sup>(a)</sup>              |
| 5/5/2015          | 2015 General Obligation Refunding Bonds                               | \$27,045,000                   | \$3,870,000                          | \$0                                      |
| 9/7/2016          | 2016 General Obligation Refunding Bonds, Series<br>B (2019 Crossover) | \$84,335,000                   | \$77,890,000                         | \$75,235,000                             |
| 11/30/2017        | Election of 2016 General Obligation Bonds,<br>Series A                | \$140,000,000                  | \$103,265,000                        | \$102,735,000                            |
| 8/5/2020          | Election of 2008 General Obligation Bonds Series<br>2020E-2           | \$23,140,000                   | \$18,595,000                         | \$17,520,000                             |
| 8/5/2020          | Election of 2016 General Obligation Bonds Series<br>2020B-2           | \$28,515,000                   | \$16,895,000                         | \$16,460,000                             |
| 8/5/2020          | 2020 General Obligation Refunding Bonds<br>(Federally Taxable)        | \$56,530,000                   | \$51,930,000                         | \$49,975,000                             |
| 3/24/2021         | Election of 2016 General Obligation Bonds Series<br>2021C             | \$46,000,000                   | \$42,495,000                         | \$42,080,000                             |
| 3/24/2021         | 2021 General Obligation Refunding Bonds<br>(Federally Taxable)        | \$150,970,000                  | \$148,535,000                        | \$147,855,000                            |
| 11/10/2021        | Election of 2008 General Obligation Bonds Series<br>2021F             | \$73,620,000                   | \$72,170,000                         | \$71,515,000                             |
| 11/10/2021        | Election of 2016 General Obligation Bonds Series<br>2021D             | \$184,000,000                  | \$161,605,000                        | \$160,375,000                            |
| 8/5/2025          | Election of 2024 General Obligation Bonds Series<br>2025A             | \$120,000,000                  | \$0 <sup>(b)</sup>                   | \$120,000,000                            |

(a) Amount outstanding is shown as original denominational amount for capital appreciation bonds.

(b) Issued subsequent to the Reporting Period Ending June 30, 2025.

**C. Official Statement Covers and Continuing Disclosure Certificates**

In the opinion of Orrick, Herrington & Sutcliffe LLP, Bond Counsel, based upon an analysis of existing laws, regulations, rulings, and court decisions and assuming, among other matters, the accuracy of certain representations and compliance with certain covenants, interest on the Bonds is excluded from gross income for federal income tax purposes under Section 103 of the Internal Revenue Code of 1986 and is exempt from State of California personal income taxes. In the further opinion of Bond Counsel, interest on the Bonds is not a specific preference item for purposes of the federal individual or corporate alternative minimum taxes, although Bond Counsel observes that such interest is included in adjusted current earnings when calculating federal corporate alternative minimum taxable income. Bond Counsel expresses no opinion regarding any other tax consequences related to the ownership or disposition of, or the accrual or receipt of interest on, the Bonds. See "LEGAL MATTERS—Tax Matters" herein.

**\$49,353,974.05****SOUTHWESTERN COMMUNITY COLLEGE DISTRICT****(San Diego County, California)****General Obligation Bonds****Election of 2000, Series 2004****Dated: Date of Delivery Due:****August 1, as shown below**

The Southwestern Community College District General Obligation Bonds, Election of 2000, Series 2004 (the "Bonds"), were authorized at an election of the registered voters of the Southwestern Community College District, San Diego County, California (the "District") held on November 7, 2000, at which at least two-thirds of the persons voting on the measure voted to authorize the issuance and sale of up to \$89,354,000 aggregate principal amount of bonds of the District. The Bonds are being issued to finance the renovation of classrooms and other college facilities throughout the District.

The Bonds are issued by the District. The Board of Supervisors of the County of San Diego (the "County") is empowered and is obligated to levy *ad valorem* taxes, without limitation of rate or amount, upon all property within the District subject to taxation (except certain personal property which is taxable at limited rates), for the payment of interest on and principal of the Bonds when due.

The Bonds are issued in book-entry form only, and are initially issued and registered in the name of Cede & Co. as nominee for The Depository Trust Company, New York, New York (collectively referred to herein as "DTC"). Purchasers will not receive certificates representing their interest in the Bonds.

The Current Interest Bonds are dated the date of their delivery. Interest with respect to the Current Interest Bonds accrues from the date of delivery of the Bonds and is payable semiannually on February 1 and August 1 of each year, commencing February 1, 2005. The Current Interest Bonds are issuable in denominations of \$5,000 or any integral multiple thereof.

The Capital Appreciation Bonds are dated the date of their delivery and accrete interest from such date, compounded semiannually February 1 and August 1 of each year, commencing February 1, 2005, payable at maturity. The Capital Appreciation Bonds are issuable in denominations of \$5,000 Maturity Value (defined herein) or any integral multiple thereof.

Payments of principal of and interest on the Bonds will be made by the Treasurer-Tax Collector of the County, as the paying agent, registrar and transfer agent (the "Paying Agent"), to DTC for subsequent disbursement to DTC Participants (defined herein) who will remit such payments to the beneficial owners of the Bonds. (See "THE BONDS — Book-Entry Only System").

**The Current Interest Bonds are subject to optional redemption prior to maturity as described herein. The Capital Appreciation Bonds are not subject to optional redemption.**

The scheduled payment of principal of and interest on the Bonds (or in the case of Capital Appreciation Bonds, the Maturity Value) when due will be guaranteed under an insurance policy to be issued concurrently with the delivery of the Bonds by Financial Guaranty Insurance Company. (See "THE BONDS — Bond Insurance" herein and APPENDIX E — FORM OF FINANCIAL GUARANTY INSURANCE POLICY).

**MATURITY SCHEDULE****\$36,360,000 Current Interest Serial Bonds**

| <b>Maturity<br/>(August 1)</b> | <b>Principal<br/>Amount</b> | <b>Interest<br/>Rate</b> | <b>Yield</b> | <b>Maturity<br/>(August 1)</b> | <b>Principal<br/>Amount</b> | <b>Interest<br/>Rate</b> | <b>Yield</b> |
|--------------------------------|-----------------------------|--------------------------|--------------|--------------------------------|-----------------------------|--------------------------|--------------|
| 2005                           | \$1,900,000                 | 2.500%                   | 1.450%       | 2015                           | \$1,740,000                 | 5.000%                   | 3.620%       |
| 2006                           | 205,000                     | 3.000                    | 1.750        | 2016                           | 2,005,000                   | 5.000                    | 3.720        |
| 2007                           | 320,000                     | 3.000                    | 2.000        | 2017                           | 2,295,000                   | 5.000                    | 3.820        |
| 2008                           | 445,000                     | 4.000                    | 2.200        | 2018                           | 2,605,000                   | 5.000                    | 3.910        |
| 2009                           | 590,000                     | 4.500                    | 2.530        | 2019                           | 2,950,000                   | 5.000                    | 4.000        |
| 2010                           | 750,000                     | 5.000                    | 2.850        | 2020                           | 3,310,000                   | 5.000                    | 4.090        |
| 2011                           | 925,000                     | 3.000                    | 3.060        | 2021                           | 3,710,000                   | 5.000                    | 4.180        |
| 2012                           | 1,100,000                   | 4.000                    | 3.250        | 2022                           | 4,125,000                   | 5.000                    | 4.270        |
| 2013                           | 1,295,000                   | 4.000                    | 3.410        | 2023                           | 4,590,000                   | 5.000                    | 4.360        |
| 2014                           | 1,500,000                   | 4.500                    | 3.520        |                                |                             |                          |              |

**\$12,993,974.05 Capital Appreciation Bonds**

| <b>Due<br/>(August 1)</b> | <b>Original<br/>Principal<br/>Amount</b> | <b>Accretion<br/>Rate</b> | <b>Reoffering<br/>Yield to<br/>Maturity</b> | <b>Maturity<br/>Value</b> |
|---------------------------|------------------------------------------|---------------------------|---------------------------------------------|---------------------------|
| 2024                      | \$1,434,188.00                           | 5.130%                    | 5.130%                                      | \$3,910,000               |
| 2025                      | 1,432,317.25                             | 5.210                     | 5.210                                       | 4,175,000                 |
| 2026                      | 2,899,439.00                             | 5.290                     | 5.290                                       | 9,050,000                 |
| 2027                      | 2,853,570.60                             | 5.350                     | 5.350                                       | 9,510,000                 |
| 2028                      | 2,822,260.25                             | 5.380                     | 5.380                                       | 9,985,000                 |
| 2029                      | 1,552,198.95                             | 5.390                     | 5.390                                       | 5,805,000                 |

**This cover page contains certain information for reference only. It is not a summary of this issue. Investors must read the entire Official Statement to obtain information essential to the making of an informed investment decision.**

The Bonds will be offered when, as and if issued by the District and received by the Underwriters, subject to the approval of legality by Orrick, Herrington & Sutcliffe LLP. Certain matters will be passed on for the District by Stradling Yocca Carlson & Rauth, a Professional Corporation, San Francisco, California, Disclosure Counsel. Certain matters will be passed on for the Underwriters by Fulbright & Jaworski LLP. The Bonds, in book-entry form, will be available for delivery through DTC in New York, New York, on or about October 13, 2004.

**Citigroup**
**KINSELL, NEWCOMB** **DE DIOS, INC.**  
 INVESTMENT BANKING

The date of this Official Statement is September 29, 2004.

## APPENDIX C

### FORM OF CONTINUING DISCLOSURE CERTIFICATE

This Continuing Disclosure Certificate (the “Disclosure Certificate”) is executed and delivered by the Southwestern Community College District (the “District”) in connection with the issuance of \$49,353,974.05 General Obligation Bonds, Election of 2000, Series 2004 (the “Bonds”). The Bonds are being issued pursuant to a Resolution of the District dated September 9, 2004 (the “Resolution”). The District covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Certificate. This Disclosure Certificate is being executed and delivered by the District for the benefit of the Holders and Beneficial Owners of the Bonds and in order to assist the Participating Underwriters in complying with S.E.C. Rule 15c2-12(b)(5).

SECTION 2. Definitions. In addition to the definitions set forth in the Resolution, which apply to any capitalized term used in this Disclosure Certificate unless otherwise defined in this Section, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 3 and 4 of this Disclosure Certificate.

“Beneficial Owner” shall mean any person which (a) has the power, directly or indirectly, to vote or consent with respect to, or to dispose of ownership of, any Bonds (including persons holding Bonds through nominees, depositories or other intermediaries), or (b) is treated as the owner of any Bonds for federal income tax purposes.

“Dissemination Agent” shall mean initially the District, or any successor Dissemination Agent designated in writing by the District (which may be the District) and which has filed with the District a written acceptance of such designation.

“Holders” shall mean registered owners of the Bonds.

“Listed Events” shall mean any of the events listed in Section 5(a) of this Disclosure Certificate.

“National Repository” shall mean any Nationally Recognized Municipal Securities Information Repository for purposes of the Rule. The National Repositories currently approved by the Securities and Exchange Commission are located at the web site <http://www.sec.gov/consumer/mrmsir.htm>.

“Participating Underwriter” shall mean any of the original underwriters of the Bonds required to comply with the Rule in connection with offering of the Bonds.

“Repository” shall mean each National Repository and each State Repository.

“Rule” shall mean Rule 15c2-12(b)(5) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as the same may be amended from time to time.

“State” shall mean the State of California.

“State Repository” shall mean any public or private repository or entity designated by the State as a state repository for the purpose of the Rule and recognized as such by the Securities and Exchange Commission. As of the date of this Certificate, there is no State Repository.

### SECTION 3. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent to, not later than 270 days following the end of the District’s fiscal year (presently ending June 30), commencing with the report for the 2003-04 Fiscal Year, provide to each Repository an Annual Report which is consistent with the requirements of Section 4 of this Disclosure Certificate. The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 4 of this Disclosure Certificate; *provided* that the audited financial statements of the District may be submitted separately from the balance of the Annual Report and later than the date required above for the filing of the Annual Report if they are not available by that date. If the District’s fiscal year changes, it shall give notice of such change in the same manner as for a Listed Event under Section 5(c).

(b) Not later than 30 nor more than 60 days prior to said date the Dissemination Agent shall give notice to the District that the Annual Report shall be required to be filed in accordance with the terms of this Disclosure Certificate. Not later than 15 Business Days prior to said date, the District shall provide the Annual Report in a format suitable for reporting to the Repositories to the Dissemination Agent (if other than the District). If the District is unable to provide to the Repositories an Annual Report by the date required in subsection (a), the District shall send a notice to each Repository in substantially the form attached as Exhibit A with a copy to the Dissemination Agent. The Dissemination Agent shall not be required to file a Notice to Repositories of Failure to File an Annual Report.

(c) The Dissemination Agent shall file a report with the District stating it has filed the Annual Report in accordance with its obligations hereunder, stating the date it was provided and listing all the Repositories to which it was provided.

SECTION 4. Content of Annual Reports. The District’s Annual Report shall contain or include by reference the following:

1. The audited financial statements of the District for the prior fiscal year, prepared in accordance with generally accepted accounting principles as promulgated to apply to governmental entities from time to time by the Governmental Accounting Standards Board. If the District’s audited financial statements are not available by the time the Annual Report is required to be filed pursuant to Section 3(a), the Annual Report shall contain unaudited financial statements in a format similar to the financial statements contained in the final Official Statement, and the audited financial statements shall be filed in the same manner as the Annual Report when they become available.

2. Material financial information and operating data with respect to the District of the type included in the Official Statement in the following categories (to the extent not included in the District’s audited financial statements):

- (a) State funding received by the District for the last completed fiscal year;
- (b) outstanding District indebtedness;
- (c) tax delinquencies, if the County is no longer on the Teeter Plan; and

- (d) summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year.

Any or all of the items listed above may be included by specific reference to other documents, including official statements of debt issues of the District or related public entities, which have been submitted to each of the Repositories or the Securities and Exchange Commission. If the document included by reference is a final official statement, it must be available from the Municipal Securities Rulemaking Board. The District shall clearly identify each such other document so included by reference.

#### SECTION 5. Reporting of Significant Events.

(a) Pursuant to the provisions of this Section 5, the District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material:

1. principal and interest payment delinquencies.
2. non-payment related defaults.
3. modifications to rights of Bondholders.
4. optional, contingent or unscheduled bond calls.
5. defeasances.
6. rating changes.
7. adverse tax opinions or events affecting the tax-exempt status of the Bonds.
8. unscheduled draws on the debt service reserves reflecting financial difficulties.
9. unscheduled draws on the credit enhancements reflecting financial difficulties.
10. substitution of the credit or liquidity providers or their failure to perform.
11. release, substitution or sale of property securing repayment of the Bonds.

(b) Whenever the District obtains knowledge of the occurrence of a Listed Event, the District shall as soon as possible determine if such event would be material under applicable federal securities laws.

(c) If the District determines that knowledge of the occurrence of a Listed Event would be material under applicable federal securities laws, the District shall promptly file a notice of such occurrence with the Repositories or provide notice of such reportable event to the Dissemination Agent in format suitable for filing with the Repositories. Notwithstanding the foregoing, notice of Listed Events described in subsections (a)(4) and (5) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolution. The Dissemination Agent shall have no duty to independently prepare or file any report of Listed Events. The Dissemination Agent may conclusively rely on the District's determination of materiality pursuant to Section 5(b).

SECTION 6. Termination of Reporting Obligation. The District's obligations under this Disclosure Certificate shall terminate upon the legal defeasance, prior redemption or payment in full of all of the Bonds. If such termination occurs prior to the final maturity of the Bonds, the District shall give notice of such termination in the same manner as for a Listed Event under Section 5(a).

SECTION 7. Dissemination Agent. The District may, from time to time, appoint or engage a Dissemination Agent (or substitute Dissemination Agent) to assist it in carrying out its obligations under this Disclosure Certificate, and may discharge any such Agent, with or without appointing a successor Dissemination Agent. The Dissemination Agent may resign upon 15 days written notice to the District. Upon such resignation, the District shall act as its own Dissemination Agent until it appoints a successor. The Dissemination Agent shall not be responsible in any manner for the content of any notice or report prepared by the District pursuant to this Disclosure Certificate and shall not be responsible to verify the accuracy, completeness or materiality of any continuing disclosure information provided by the District. The District shall compensate the Dissemination Agent for its fees and expenses hereunder as agreed by the parties. Any entity succeeding to all or substantially all of the Dissemination Agent's corporate trust business shall be the successor Dissemination Agent without the execution or filing of any paper or further act.

SECTION 8. Amendment; Waiver. Notwithstanding any other provision of this Disclosure Certificate, the District may amend this Disclosure Certificate, and any provision of this Disclosure Certificate may be waived, provided that the following conditions are satisfied:

- (a) If the amendment or waiver relates to the provisions of Sections 3(a), 4, or 5(a), it may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature or status of an obligated person with respect to the Bonds, or the type of business conducted;
- (b) The undertaking, as amended or taking into account such waiver, would, in the opinion of nationally recognized bond counsel, have complied with the requirements of the Rule at the time of the original issuance of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;
- (c) The amendment or waiver does not, in the opinion of nationally recognized bond counsel, materially impair the interests of the Holders or Beneficial Owners of the Bonds; and
- (d) No duties of the Dissemination Agent hereunder shall be amended without its written consent thereto.

In the event of any amendment or waiver of a provision of this Disclosure Certificate, the District shall describe such amendment in the next Annual Report, and shall include, as applicable, a narrative explanation of the reason for the amendment or waiver and its impact on the type (or in the case of a change of accounting principles, on the presentation) of financial information or operating data being presented by the District. In addition, if the amendment relates to the accounting principles to be followed in preparing financial statements, (i) notice of such change shall be given in the same manner as for a Listed Event under Section 5(a), and (ii) the Annual Report for the year in which the change is made should present a comparison (in narrative form and also, if feasible, in quantitative form) between the financial statements as prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles.

SECTION 9. Additional Information. Nothing in this Disclosure Certificate shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth

in this Disclosure Certificate or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is required by this Disclosure Certificate. If the District chooses to include any information in any Annual Report or notice of occurrence of a Listed Event in addition to that which is specifically required by this Disclosure Certificate, the District shall have no obligation under this Certificate to update such information or include it in any future Annual Report or notice of occurrence of a Listed Event.

SECTION 10. Default. In the event of a failure of the District to comply with any provision of this Disclosure Certificate any Holder or Beneficial Owner of the Bonds may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Certificate. A default under this Disclosure Certificate shall not be deemed an event of default under the Resolution, and the sole remedy under this Disclosure Certificate in the event of any failure of the District to comply with this Disclosure Certificate shall be an action to compel performance.

SECTION 11. Duties, Immunities and Liabilities of Dissemination Agent. The Dissemination Agent shall have only such duties as are specifically set forth in this Disclosure Certificate. The Dissemination Agent acts hereunder solely for the benefit of the District; this Disclosure Certificate shall confer no duties on the Dissemination Agent to the Participating Underwriters, the Holders and the Beneficial Owners. The District agrees to indemnify and save the Dissemination Agent, its officers, directors, employees and agents, harmless against any loss, expense and liabilities which it may incur arising out of or in the exercise or performance of its powers and duties hereunder, including the costs and expenses (including attorneys fees) of defending against any claim of liability, but excluding liabilities due to the Dissemination Agent's gross negligence or willful misconduct. The obligations of the District under this Section shall survive resignation or removal of the Dissemination Agent and payment of the Bonds. The Dissemination Agent shall have no liability for the failure to report any event or any financial information as to which the District has not provided an information report in format suitable for filing with the Repositories. The Dissemination Agent shall not be required to monitor or enforce the District's duty to comply with its continuing disclosure requirements hereunder.

SECTION 12. Beneficiaries. This Disclosure Certificate shall inure solely to the benefit of the District, the Dissemination Agent, the Participating Underwriters and Holders and Beneficial Owners from time to time of the Bonds, and shall create no rights in any other person or entity.

Date: October 13, 2004

**SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT**

By: \_\_\_\_\_  
Norma Hernández  
Superintendent/President

**EXHIBIT A**

**NOTICE TO REPOSITORIES OF FAILURE TO FILE ANNUAL REPORT**

Name of District: SOUTHWESTERN COMMUNITY COLLEGE DISTRICT

Name of Bond Issue: General Obligation Bonds, Election of 2000, Series 2004

Date of Issuance: October 13, 2004

NOTICE IS HEREBY GIVEN that the District has not provided an Annual Report with respect to the above-named Bonds as required by the Continuing Disclosure Certificate relating to the Bonds. The District anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated:\_\_\_\_\_

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By [form only; no signature required]

*In the opinion of Fulbright & Jaworski L.L.P., Los Angeles, California, Bond Counsel, under existing law, interest on the Bonds is exempt from personal income taxes of the State of California, and, assuming continuing compliance after the date of initial delivery of the Bonds with certain covenants contained in the Resolutions authorizing the Bonds and subject to the matters set forth under “TAX MATTERS” herein, interest on the Bonds for federal income tax purposes under existing statutes, regulations, published rulings, and court decisions will be excludable from the gross income of the owners thereof pursuant to section 103 of the Internal Revenue Code of 1986, as amended, to the date of initial delivery of the Bonds, and will not be included in computing the alternative minimum taxable income of individuals or, except as described herein, corporations. See “TAX MATTERS” herein.*

**\$68,730,371.35**

**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT  
(San Diego County, California)  
Election of 2008 General Obligation Bonds, Series C**

**Dated: Date of Delivery****Due: August 1, as shown on inside cover.**

**THIS COVER PAGE CONTAINS CERTAIN INFORMATION FOR QUICK REFERENCE ONLY. IT IS NOT A SUMMARY OF THIS ISSUE. INVESTORS MUST READ THE ENTIRE OFFICIAL STATEMENT TO OBTAIN INFORMATION ESSENTIAL TO THE MAKING OF AN INFORMED INVESTMENT DECISION.**

The captioned Bonds were authorized at an election conducted on November 4, 2008 within the Southwestern Community College District (the “District”), and represent the third series of Bonds to be issued under the Authorization, as defined and more fully described herein under the caption “THE BONDS — Authority for Issuance and Security for the Bonds.” The Bonds are being issued in order to finance the construction, acquisition, furnishing and equipping of District facilities and to pay certain costs of issuance, as more fully described herein under the caption “THE BONDS — Purpose of Issue.” The Bonds will be issued on a parity with all other general obligation bonds of the District and will be issued in denominations of \$5,000 principal amount, Maturity Amount or integral multiples thereof, and are payable as to principal amount or redemption price at the office of the Treasurer and Tax Collector of the County of San Diego, California, Paying Agent for the Bonds (the “Paying Agent”). The District’s Election of 2008 General Obligation Bonds, Series C (the “Bonds”) will be issued as Bonds bearing interest on a current basis (the “Current Interest Bonds”), and Bonds that will not bear current interest (the “Capital Appreciation Bonds”), but will accrete in value from their initial amounts (the “Denominational Amounts”) to their respective accreted values on their respective maturity dates (“Maturity Amount”).

Interest on the Current Interest Bonds is payable on February 1 and August 1 of each year, commencing August 1, 2011; interest will accrete on the Capital Appreciation Bonds on February 1 and August 1 of each year, commencing August 1, 2011. See the caption “THE BONDS — Authority for Issuance and Security for the Bonds.”

---

**MATURITY SCHEDULE  
(See Inside Cover)**

---

The Bonds are issued in fully registered form and, when delivered, will be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York (“DTC”). DTC will act as securities depository for the Bonds as described herein at APPENDIX F — “Book-Entry Only System.”

**Certain of the Bonds are subject to redemption prior to maturity as described herein. See “THE BONDS — Redemption” herein.**

The Bonds are general obligations of the District only and are not obligations of the County of San Diego, the State of California or any of its other political subdivisions. The Board of Supervisors of the County of San Diego has the power and is obligated to levy and collect *ad valorem* property taxes for each fiscal year upon the taxable property of the District in an amount at least sufficient, together with other moneys available for such purpose, to pay the principal of or Maturity Amount, and premium, if any, and interest on each Bond as the same becomes due and payable.

*The Bonds will be offered when, as and if issued and received by the Underwriters subject to the approval of legality by Fulbright & Jaworski L.L.P., Los Angeles, California, Bond Counsel, and certain other conditions. Fulbright & Jaworski L.L.P., Los Angeles, California, is acting as Disclosure Counsel for the issue. Certain legal matters will be passed upon for the Underwriters by their counsel, Stradling Yocca Carlson & Rauth, A Professional Corporation, San Francisco, California. Certain legal matters for the County of San Diego are being passed upon by the Office of County Counsel of the County of San Diego. It is anticipated that the Bonds will be available through the facilities of DTC in New York, New York, on or about June 16, 2011.*

**Alta Vista Financial, Inc.**

**Cabrera Capital Markets, LLC**

**RBC CAPITAL MARKETS**

Dated: June 2, 2011

## **MATURITY SCHEDULE**

**\$68,730,371.35**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2008 General Obligation Bonds, Series C**

**\$17,145,000.00 Current Interest Bonds**

| <b><u>Maturity</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b> | <b>CUSIP No.<sup>(1)</sup></b><br><b><u>(845389)</u></b> |
|----------------------------------------------------|-------------------------------------------------|----------------------------------------------|---------------------|----------------------------------------------------------|
| 2011                                               | \$2,285,000                                     | 1.00%                                        | 0.28%               | DZ5                                                      |
| 2012                                               | 45,000                                          | 2.00                                         | 0.60                | EA9                                                      |
| 2014                                               | 30,000                                          | 3.00                                         | 1.20                | EB7                                                      |
| 2015                                               | 100,000                                         | 3.00                                         | 1.50                | EC5                                                      |
| 2016                                               | 175,000                                         | 4.00                                         | 1.75                | ED3                                                      |
| 2017                                               | 260,000                                         | 4.00                                         | 2.15                | EE1                                                      |
| 2018                                               | 345,000                                         | 4.00                                         | 2.50                | EF8                                                      |
| 2019                                               | 440,000                                         | 5.00                                         | 2.80                | EG6                                                      |
| 2020                                               | 545,000                                         | 5.00                                         | 3.00                | EH4                                                      |
| 2021                                               | 655,000                                         | 5.00                                         | 3.20                | EJ0                                                      |
| 2022                                               | 775,000                                         | 5.00                                         | 3.48*               | EK7                                                      |
| 2023                                               | 900,000                                         | 5.00                                         | 3.70*               | EL5                                                      |
| 2024                                               | 1,035,000                                       | 5.00                                         | 3.90*               | EM3                                                      |
| 2025                                               | 1,180,000                                       | 5.00                                         | 4.15*               | EN1                                                      |
| 2026                                               | 1,325,000                                       | 5.00                                         | 4.30*               | EP6                                                      |
| 2027                                               | 1,490,000                                       | 5.00                                         | 4.40*               | EQ4                                                      |
| 2028                                               | 1,665,000                                       | 5.00                                         | 4.51*               | ER2                                                      |
| 2029                                               | 1,850,000                                       | 5.00                                         | 4.60*               | ES0                                                      |
| 2030                                               | 2,045,000                                       | 5.00                                         | 4.70*               | ET8                                                      |

**\$17,245,000.00 5.25% Current Interest Term Bonds due August 1, 2036 – Yield 5.04%<sup>(\*)</sup> – CUSIP No.<sup>(1)</sup> 845389EU5**  
**\$23,965,000.00 5.00% Current Interest Term Bonds due August 1, 2040 – Yield 5.17% – CUSIP No.<sup>(1)</sup> 845389EV3**

**(\*) Yield to call at par on August 1, 2021**

**\$10,375,371.35 Capital Appreciation Term Bonds**

| <b><u>Maturity</u></b><br><b><u>(August 1)</u></b> | <b><u>Denominational</u></b><br><b><u>Amount</u></b> | <b><u>Reoffering</u></b><br><b><u>Yield to</u></b><br><b><u>Maturity</u></b> | <b><u>Accretion</u></b><br><b><u>Rate</u></b> | <b><u>Maturity</u></b><br><b><u>Amount</u></b> | <b>CUSIP No.<sup>(1)</sup></b><br><b><u>(845389)</u></b> |
|----------------------------------------------------|------------------------------------------------------|------------------------------------------------------------------------------|-----------------------------------------------|------------------------------------------------|----------------------------------------------------------|
| 2041                                               | \$2,399,160.05                                       | 7.15%                                                                        | 7.15%                                         | \$19,915,000                                   | EW1                                                      |
| 2046                                               | 7,976,211.30                                         | 7.30                                                                         | 7.30                                          | 98,985,000                                     | EX9                                                      |

<sup>(1)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services, managed by Standard & Poor's Financial Services LLC on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the Underwriters, the Financial Advisor nor the District is responsible for the selection or correctness of the CUSIP numbers set forth herein.

## APPENDIX E

### FORM OF CONTINUING DISCLOSURE AGREEMENT

This Continuing Disclosure Agreement (this “Agreement”) is executed and delivered by the Southwestern Community College District (the “District”) in connection with the execution and delivery of \$68,730,371.35 aggregate principal or issue amount of the District’s Election of 2008 General Obligation Bonds, Series C (the “Bonds”). The Bonds are being issued pursuant to a Resolution adopted by the Governing Board of the District on May 11, 2011 (the “Resolution”). Capitalized terms used but not defined herein shall have the meanings ascribed thereto in the Resolution.

In consideration of the execution and delivery of the Bonds by the District and the purchase of such Bonds by the Underwriters described below, the District hereby covenants and agrees as follows:

SECTION 1. Purpose of the Agreement. This Agreement is being executed and delivered by the District for the benefit of the owners of the Bonds and in order to assist the Participating Underwriters in complying with Rule 15c2-12(b)(5) (the “Rule”) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended.

SECTION 2. Additional Definitions. In addition to the above definitions and the definitions set forth in the Resolution, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 4 and 5 of this Agreement.

“Bondholder” or “Holder” means any holder of the Bonds or any beneficial owner of the Bonds so long as they are immobilized with DTC.

“Business Day” means any day (other than a Saturday or Sunday) on which the Dissemination Agent, or banks and trust companies generally in New York, New York, or Los Angeles, California are not authorized or required to remain closed and on which the New York Stock Exchange is not closed.

“Dissemination Agent” shall mean any Dissemination Agent, or any alternate or successor Dissemination Agent, designated in writing by the Interim Vice President for Business & Financial Affairs (or otherwise by the District), which has evidenced its acceptance in writing. Initially, and in the absence of the specific designation of a successor or alternate Dissemination Agent, the Dissemination Agent shall initially be the District.

“Listed Event” means any of the events listed in Section 6 of this Agreement.

“MSRB” shall mean the Municipal Securities Rulemaking Board or any other entity designated or authorized by the Securities and Exchange Commission to receive reports pursuant to the Rule. Until otherwise designated by the MSRB or the Securities and Exchange Commission, filings with the MSRB are to be made through the Electronic Municipal Market Access (“EMMA”) website of the MSRB, currently located at <http://emma.msrb.org>.

“Participating Underwriters” shall mean any of the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

SECTION 3. CUSIP Numbers and Final Official Statement. The CUSIP Numbers for the Bonds have been assigned. The Final Official Statement relating to the Bonds is dated June 2, 2011 (“Final Official Statement”).

#### SECTION 4. Provision of Annual Reports.

(a) The District shall cause the Dissemination Agent, not later than 270 days after the end of the District's fiscal year (currently ending June 30), commencing with the report for the fiscal year ending June 30, 2011, to provide to the MSRB an Annual Report which is consistent with the requirements of Section 5 of this Agreement. The Annual Report must be submitted in electronic format, accompanied by such identifying information as prescribed by the MSRB, may be submitted as a single document or as separate documents comprising a package and may cross-reference other information as provided in Section 5 of this Agreement; provided that the audited financial statements of the District may be submitted, when and if available, separately from the balance of the relevant Annual Report.

(b) If the District is unable to provide or cause to be given to the MSRB an Annual Report by the date required in paragraph (a) above, the District shall send a notice to the MSRB in substantially the form attached as Exhibit A.

(c) The Dissemination Agent shall:

(i) provide any Annual Report received by it to the MSRB as provided herein; and

(ii) if the Dissemination Agent is other than the District or an official of the District, the Dissemination Agent shall file a report with the District certifying that the Annual Report has been provided pursuant to this Agreement, stating the date it was provided to the MSRB.

SECTION 5. Content of Annual Report. The District's Annual Report shall contain or incorporate by reference the following:

(a) Audited financial information, including the general purpose financial statements of the District for the preceding Fiscal Year, prepared in conformity with generally accepted accounting principles as prescribed by the Governmental Accounting Standards Board and the American Institute of Certified Public Accountants. If audited financial information is not available by the time the Annual Report is required to be filed pursuant to Section 4(a) hereof, the financial information included in the Annual Report may be unaudited, and the District will provide audited financial information to the MSRB as soon as practical after it has been made available to the District.

(b) Operating data, including the following information with respect to the District's preceding Fiscal Year (to the extent not included in the audited financial statements described in paragraph (a) above):

(i) State funding received by the District for the last completed fiscal year;

(ii) FTES of the District for the last completed fiscal year;

(iii) outstanding District indebtedness; and

(iv) summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year.

(c) Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues of the District or related public entities, which have been made available on the MSRB's website. The District shall clearly identify each other document so incorporated by reference.

SECTION 6. Reporting of Significant Events.

(a) The District agrees to provide or cause to be provided to the MSRB notice of the occurrence of any of the following events with respect to the Bonds not later than ten (10) business days after the occurrence of the event:

- (i) Principal and interest payment delinquencies;
- (ii) Defeasances;
- (iii) Rating Changes
- (iv) Adverse tax opinion, the issuance by the Internal Revenue Service of proposed or final determination of taxability or Notice of Proposed Issue (IRS Form 5701 TEB);
- (v) Unscheduled draws on any debt service reserves reflecting financial difficulties;
- (vi) Unscheduled draws on any credit enhancements reflecting financial difficulties;
- (vii) Substitution of credit or liquidity providers, or their failure to perform;
- (viii) Tender Offers; or
- (ix) Bankruptcy, insolvency, receivership or similar event of the District.

For purposes of item (ix) above, the described event shall be deemed to occur when any of the following shall occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the United States Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or other governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority have supervision or jurisdiction over substantially all of the assets or business of the District.

(b) The District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material, not later than ten (10) business days after the occurrence of the event:

- (i) Unless described in paragraph 6(a)(v) hereof, other material notices or determinations by the Internal Revenue Service with respect to the tax status of the Bonds or other material events affecting the tax status of the Bonds;
- (ii) Modifications of rights to Bond Holders;
- (iii) Optional, unscheduled or contingent Bond calls;
- (iv) Release, substitution or sale of property securing repayment of the Bonds;
- (v) Non-payment related defaults;

(vi) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms; or

(vii) Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent.

(c) The District shall give, or cause to be given, in a timely manner, notice of a failure to provide the annual financial information on or before the date specified in Section 4 hereof, as provided in Section 4(b) hereof.

(d) Whenever the District obtains knowledge of the occurrence of a Listed Event described in Section 6(a) hereof, or determines that knowledge of a Listed Event described in Section 6(b) hereof would be material under applicable federal securities laws, the District shall within ten (10) business days of occurrence file a notice of such occurrence with the MSRB in electronic format, accompanied by such identifying information as is prescribed by the MSRB. Notwithstanding the foregoing, notice of the Listed Event described in subsections (a)(vii) or (b)(iii) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolution.

SECTION 7. Termination of Reporting Obligation. The District's obligations under this Agreement shall terminate when the District is no longer an obligated person with respect to the Bonds, as provided in the Rule, upon the defeasance, prior redemption or payment in full of all of the Bonds. If such termination occurs prior to the final maturity of the Bonds, the District shall give notice of such termination by making a written filing with MSRB to that effect.

SECTION 8. Dissemination Agent. The Interim Superintendent/President or the Interim Vice President for Business & Financial Affairs or any designee thereof may, from time to time, appoint or engage an alternate or successor Dissemination Agent to assist in carrying out the District's obligations under this Agreement, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. The Dissemination Agent agrees to perform only those duties of the Dissemination Agent specifically set forth in the Agreement, and no implied duties, covenants or obligations shall be read into this Agreement against the Dissemination Agent. The District may subsequently appoint another Dissemination Agent. If at any time there is no other designated Dissemination Agent in place, the District shall act as the Dissemination Agent.

The Dissemination Agent shall be paid compensation for its services provided hereunder, and reimbursement for its costs and expenses. The Dissemination Agent shall not be responsible for the form or content of any document provided by the District hereunder.

SECTION 9. Amendment. Notwithstanding any other provision of this Agreement, the District may amend this Agreement under the following conditions:

(a) The amendment may be made only in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of the obligated person, or type of business conducted;

(b) This Agreement, as amended, would have complied with the requirements of the Rule at the time of the primary offering of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment does not materially impair the interests of Holders, as determined either by parties unaffiliated with the District (such as Bond Counsel) or another obligated person or by the written approval of the Bondholders;

provided, that the Annual Report containing the amended operating data or financial information shall explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided.

SECTION 10. Additional Information. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Agreement, the District shall have no obligation under this Agreement to update such information or to include it in any future disclosure or notice of occurrence of a Listed Event.

Nothing in this Agreement shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Agreement or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is required by this Agreement.

SECTION 11. Default. The District shall give notice to the MSRB of any failure to provide the Annual Report when the same is due hereunder. In the event of a failure of the District to comply with any provision of this Agreement, any Bondholder may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Agreement. A default under this Agreement shall not be deemed an event of default under the Resolution, and the sole remedy under this Agreement in the event of any failure of the District or the Dissemination Agent to comply with this Agreement shall be an action to compel performance.

SECTION 12. Beneficiaries. This Agreement shall inure solely to the benefit of the District, the Dissemination Agent, the Participating Underwriter and Holders from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Assignment. The District shall not transfer its obligations under the Resolution unless the transferee agrees to assume all obligations of the District under this Agreement that would have been obligations of the transferee under the Rule, as amended as of the date of this Agreement.

SECTION 14. Governing Law. This Agreement shall be governed by the laws of the State, applicable to contracts made and performed in such State.

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By: \_\_\_\_\_  
Interim Vice President for Business & Financial  
Affairs

Dated: June 16, 2011

EXHIBIT A

NOTICE TO THE MUNICIPAL SECURITIES RULEMAKING BOARD  
OF FAILURE TO FILE ANNUAL REPORT

Name of Issuer: Southwestern Community College District (San Diego County, California)  
Name of Issue: \$68,730,371.35 Election of 2008 General Obligation Bonds, Series C  
Date of Issuance: June 16, 2011

NOTICE IS HEREBY GIVEN that the above-named Issuer has not provided an Annual Report with respect to the above-named Bonds as required by Section 4(a) of the Continuing Disclosure Agreement dated June 16, 2011. The Issuer anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

[ISSUER/DISSEMINATION AGENT]

By: \_\_\_\_\_

*In the opinion of Stradling Yocca Carlson & Rauth, a Professional Corporation, San Francisco, California ("Bond Counsel"), under existing statutes, regulations, rulings and judicial decisions, and assuming the accuracy of certain representations and compliance with certain covenants and requirements described herein, interest (and original issue discount) on the Bonds is excluded from gross income for federal income tax purposes and is not an item of tax preference for purposes of calculating the federal alternative minimum tax imposed on individuals and corporations. In the further opinion of Bond Counsel, interest (and original issue discount) on the Bonds is exempt from State of California personal income tax. See "TAX MATTERS" herein with respect to tax consequences relating to the Bonds.*

**\$87,735,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**

**\$3,400,000**  
**2016 General Obligation Refunding Bonds, Series A**

**\$84,335,000**  
**2016 General Obligation Refunding Bonds, Series B**  
**(2019 Crossover)**

**Dated: Date of Delivery**

**Due: August 1, as shown on the inside cover**

*This cover page contains certain information for quick reference only. It is not a summary of this issue. Investors must read the entire Official Statement to obtain information essential to the making of an informed investment decision. Capitalized terms used on this cover page not otherwise defined shall have the meanings set forth herein.*

The Southwestern Community College District (San Diego County, California) 2016 General Obligation Refunding Bonds, Series A (the "Series A Bonds"), are being issued by the Southwestern Community College District (the "District") to (i) advance refund all or a portion of the District's outstanding Election of 2008 General Obligation Bonds, Series A, and (ii) pay the costs of issuing the Series A Bonds.

The Series A Bonds are general obligations of the District payable solely from the proceeds of *ad valorem* property taxes. The Board of Supervisors of San Diego County (the "County") is empowered and obligated to levy *ad valorem* taxes, without limitation as to rate or amount, upon all property within the District subject to taxation by the District (except certain personal property which is taxable at limited rates), for the payment of principal of and interest on the Series A Bonds when due.

The Southwestern Community College District (San Diego County, California) 2016 General Obligation Refunding Bonds, Series B (2019 Crossover) (the "Series B Bonds," and, together with the Series A Bonds, the "Bonds"), are being issued by the District to (i) advance refund, on a crossover basis, the District's outstanding Election of 2008 Taxable General Obligation Bonds (Build America Bonds – Direct Payment to District), Series B and (ii) pay the costs of issuing the Series B Bonds.

**Prior to August 1, 2019 (the "Crossover Date"), the Series B Bonds shall be secured by and payable solely from proceeds of the Series B Bonds deposited into an escrow fund established therefor.** From and after the Crossover Date, the Series B Bonds shall, without any further action on the part of the District or the Owners or Beneficial Owners of the Series B Bonds, constitute general obligations of the District payable solely from *ad valorem* property taxes. From and after the Crossover Date, the Board of Supervisors of the County shall be empowered and obligated to levy *ad valorem* taxes, without limitation as to rate or amount, upon all property within the District subject to taxation by the District (except certain personal property which is taxable at limited rates), for the payment of principal of and interest on the Series B Bonds when due.

The Bonds will be issued in book-entry form only, and will be initially issued and registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"). Purchasers of the Bonds (the "Beneficial Owners") will not receive certificates representing their interests in the Bonds. See "THE BONDS – Book-Entry Only System" herein.

The Bonds will be issued as current interest bonds, such that interest thereon shall accrue from the date of delivery and be payable semiannually on February 1 and August 1 of each year, commencing February 1, 2017. The Bonds are issuable in denominations of \$5,000 principal amount or any integral multiple thereof.

Payments of principal of and interest on the Bonds will be made by the Treasurer-Tax Collector of the County as the designated paying agent, bond registrar and transfer agent (collectively, the "Paying Agent") to DTC for subsequent disbursement to DTC Participants (as defined herein) who will remit such payments to the Beneficial Owners of the Bonds. See "THE BONDS – Book-Entry Only System" herein.

**The Bonds are subject to optional and mandatory sinking fund redemption prior to maturity, as stated herein.**

---

**MATURITY SCHEDULES**  
**(See inside front cover)**

---

*The Bonds are offered when, as and if issued, and received by the Underwriters, subject to the approval as to their legality by Stradling Yocca Carlson & Rauth, a Professional Corporation, San Francisco, California, Bond Counsel and Disclosure Counsel to the District. Certain matters will be passed upon for the Underwriters by Norton Rose Fulbright US LLP, Los Angeles, California. It is anticipated that the Bonds in book-entry form will be available for delivery through the facilities of The Depository Trust Company, in New York, New York, on or about September 7, 2016.*

**Morgan Stanley**

**PiperJaffray**

Dated: August 17, 2016

## MATURITY SCHEDULES

**\$3,400,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**2016 General Obligation Refunding Bonds, Series A**  
**Base CUSIP<sup>(1)</sup>: 845389**

| <u>Maturity</u><br><u>(August 1)</u> | <u>Principal</u><br><u>Amount</u> | <u>Interest</u><br><u>Rate</u> | <u>Yield</u> | <u>CUSIP<sup>(1)</sup></u> |
|--------------------------------------|-----------------------------------|--------------------------------|--------------|----------------------------|
| 2020                                 | \$1,600,000                       | 3.000%                         | 0.650%       | GL3                        |
| 2021                                 | 1,800,000                         | 3.000                          | 0.790        | GM1                        |

**\$84,335,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**2016 General Obligation Refunding Bonds, Series B (2019 Crossover)**  
**Base CUSIP<sup>(1)</sup>: 845389**

**\$61,015,000 Serial Bonds**

| <u>Maturity</u><br><u>(August 1)</u> | <u>Principal</u><br><u>Amount</u> | <u>Interest</u><br><u>Rate</u> | <u>Yield</u>         | <u>CUSIP<sup>(1)</sup></u> |
|--------------------------------------|-----------------------------------|--------------------------------|----------------------|----------------------------|
| 2022                                 | \$1,905,000                       | 4.000%                         | 0.920%               | GN9                        |
| 2023                                 | 2,150,000                         | 4.000                          | 1.050                | GP4                        |
| 2024                                 | 2,390,000                         | 4.000                          | 1.150                | GQ2                        |
| 2025                                 | 2,655,000                         | 4.000                          | 1.250                | GR0                        |
| 2026                                 | 2,940,000                         | 4.000                          | 1.380                | GS8                        |
| 2027                                 | 3,235,000                         | 5.000                          | 1.540 <sup>(2)</sup> | GT6                        |
| 2028                                 | 3,575,000                         | 5.000                          | 1.680 <sup>(2)</sup> | GU3                        |
| 2029                                 | 3,940,000                         | 5.000                          | 1.800 <sup>(2)</sup> | GV1                        |
| 2030                                 | 4,325,000                         | 3.000                          | 2.420 <sup>(2)</sup> | GW9                        |
| 2031                                 | 4,655,000                         | 3.000                          | 2.530 <sup>(2)</sup> | GX7                        |
| 2032                                 | 4,995,000                         | 4.000                          | 2.260 <sup>(2)</sup> | GY5                        |
| 2033                                 | 5,400,000                         | 4.000                          | 2.320 <sup>(2)</sup> | GZ2                        |
| 2034                                 | 5,825,000                         | 4.000                          | 2.370 <sup>(2)</sup> | HA6                        |
| 2035                                 | 6,275,000                         | 4.000                          | 2.420 <sup>(2)</sup> | HB4                        |
| 2036                                 | 6,750,000                         | 4.000                          | 2.460 <sup>(2)</sup> | HC2                        |

**\$23,320,000 – 4.000% Term Bond due August 1, 2039; Yield – 2.490%<sup>(2)</sup>; CUSIP<sup>(1)</sup>: HD0**

<sup>(1)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services (“CGS”), managed by S&P Capital IQ on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CGS database. Neither the Underwriters nor the District is responsible for the selection or correctness of the CUSIP numbers set forth herein. CUSIP numbers have been assigned by an independent company not affiliated with the District or the Underwriters and are included solely for the convenience of the registered owners of the applicable Bonds. Neither the District nor the Underwriters are responsible for the selection or uses of these CUSIP numbers, and no representation is made as to their correctness on the applicable Bonds or as included herein. The CUSIP number for a specific maturity is subject to being changed after the execution and delivery of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

<sup>(2)</sup> Yield to call at par on August 1, 2026.

## APPENDIX C

### FORM OF CONTINUING DISCLOSURE CERTIFICATE

This Continuing Disclosure Certificate (the “Disclosure Certificate”) is executed and delivered by the Southwestern Community College District (the “District”) in connection with the issuance of \$3,400,000 of the District’s 2016 General Obligation Refunding Bonds, Series A and \$84,335,000 of the District’s 2016 General Obligation Refunding Bonds, Series B (2019 Crossover) (together, the “Bonds”). The Bonds are being issued pursuant to Resolutions of the Governing Board of the District adopted on June 14, 2016 and July 12, 2016. The District covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Certificate. This Disclosure Certificate is being executed and delivered by the District for the benefit of the Holders and Beneficial Owners of the Bonds and in order to assist the Participating Underwriters in complying with Securities and Exchange Commission Rule 15c2-12(b)(5).

SECTION 2. Definitions. In addition to the definitions set forth in the Resolutions, which apply to any capitalized term used in this Disclosure Certificate unless otherwise defined in this Section, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 3 and 4 of this Disclosure Certificate.

“Beneficial Owner” shall mean any person which (a) has the power, directly or indirectly, to vote or consent with respect to, or to dispose of ownership of, any Bonds (including persons holding Bonds through nominees, depositories or other intermediaries), or (b) is treated as the owner of any Bonds for federal income tax purposes.

“Dissemination Agent” shall mean initially KNN Public Finance, LLC, or any successor Dissemination Agent designated in writing by the District (which may be the District) and which has filed with the District a written acceptance of such designation.

“Holders” shall mean registered owners of the Bonds.

“Listed Events” shall mean any of the events listed in Section 5(a) or 5(b) of this Disclosure Certificate.

“Official Statement” shall mean the Official Statement relating to the sale of the Bonds, dated as of August 17, 2016.

“Participating Underwriters” shall mean Morgan Stanley & Co. LLC and Piper Jaffray & Co., as the original underwriters of the Bonds required to comply with the Rule in connection with offering of the Bonds.

“Repository” shall mean, the Municipal Securities Rulemaking Board, which can be found at <http://emma.msrb.org/>, or any other repository of disclosure information that may be designated by the Securities and Exchange Commission as such for purposes of the Rule in the future.

“Rule” shall mean Rule 15c2-12(b)(5) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as the same may be amended from time to time.

“State” shall mean the State of California.

### SECTION 3. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent to, not later than nine months after the end of the District’s fiscal year (presently ending June 30), commencing with the report for the 2015-16 Fiscal Year, provide to the Repository an Annual Report which is consistent with the requirements of Section 4 of this Disclosure Certificate. The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 4 of this Disclosure Certificate; *provided* that the audited financial statements of the District may be submitted separately from the balance of the Annual Report and later than the date required above for the filing of the Annual Report if they are not available by that date. If the District’s fiscal year changes, it shall give notice of such change in the same manner as for a Listed Event under Section 5(b).

(b) Not later than 30 days (nor more than 60 days) prior to said date the Dissemination Agent shall give notice to the District that the Annual Report shall be required to be filed in accordance with the terms of this Disclosure Certificate. Not later than 15 Business Days prior to said date, the District shall provide the Annual Report in a format suitable for reporting to the Repository to the Dissemination Agent (if other than the District). If the District is unable to provide to the Repository an Annual Report by the date required in subsection (a), the District shall send a notice to the Repository in substantially the form attached as Exhibit A with a copy to the Dissemination Agent. The Dissemination Agent shall not be required to file a Notice to Repository of Failure to File an Annual Report.

(c) The Dissemination Agent shall file a report with the District stating it has filed the Annual Report in accordance with its obligations hereunder, stating the date it was provided to the Repository.

SECTION 4. Content of Annual Reports. (a) The District’s Annual Report shall contain or include by reference the following:

1. The audited financial statements of the District for the prior fiscal year, prepared in accordance with generally accepted accounting principles as promulgated to apply to governmental entities from time to time by the Governmental Accounting Standards Board. If the District’s audited financial statements are not available by the time the Annual Report is required to be filed pursuant to Section 3(a), the Annual Report shall contain unaudited financial statements in a format similar to the financial statements contained in the final Official Statement, and the audited financial statements shall be filed in the same manner as the Annual Report when they become available.

2. Material financial information and operating data with respect to the District of the type included in the Official Statement in the following categories (to the extent not included in the District’s audited financial statements):

- (i) State funding received by the District for the last completed fiscal year;
- (ii) FTES of the District for the last completed fiscal year;

- (iii) outstanding District indebtedness;
- (iv) summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting the adopted budget for the then-current fiscal year;
- (v) assessed valuation for real property located in the District for the then-current fiscal year; and
- (vi) secured *ad valorem* tax delinquencies within the District for the current year, to the extent that the County discontinues the Teeter Plan (as such term is defined in the Official Statement).

Any or all of the items listed above may be included by specific reference to other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the Repository or the Securities and Exchange Commission. If the document included by reference is a final official statement, it must be available from the Municipal Securities Rulemaking Board. The District shall clearly identify each such other document so included by reference.

(b) The Annual Report shall be filed in an electronic format accompanied by identifying information prescribed by the Municipal Securities Rulemaking Board.

#### SECTION 5. Reporting of Significant Events.

(a) Pursuant to the provisions of this Section 5(a), the District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds in a timely manner not in excess of 10 business days after the occurrence of the event:

- 1. principal and interest payment delinquencies.
- 2. tender offers.
- 3. defeasances.
- 4. rating changes.
- 5. adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, or Notices of Proposed Issue (IRS Form 5701-TEB).
- 6. unscheduled draws on the debt service reserves reflecting financial difficulties.
- 7. unscheduled draws on credit enhancement reflecting financial difficulties.
- 8. substitution of the credit or liquidity providers or their failure to perform.
- 9. bankruptcy, insolvency, receivership or similar event (within the meaning of the Rule) of the District. For the purposes of the event identified in this Section 5(a)(9), the event is considered to occur when any of the following occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the U.S. Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governmental body and officials or officers in

possession but subject to the supervision and orders of a court or governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority having supervision or jurisdiction over substantially all of the assets or business of the District.

(b) Pursuant to the provisions of this Section 5(b), the District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material:

1. non-payment related defaults.
2. modifications to rights of Holders.
3. optional, contingent or unscheduled bond calls.
4. unless described under Section 5(a)(5) above, material notices or determinations with respect to the tax status of the Bonds, or other material events affecting the tax status of the Bonds.
5. release, substitution or sale of property securing repayment of the Bonds.
6. the consummation of a merger, consolidation, or acquisition involving the District or the sale of all or substantially all of the assets of the District, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms.
7. Appointment of a successor or additional trustee or paying agent with respect to the Bonds or the change of name of such a trustee or paying agent.

(c) Whenever the District obtains knowledge of the occurrence of a Listed Event under Section 5(b) hereof, the District shall as soon as possible determine if such event would be material under applicable federal securities laws.

(d) If the District determines that knowledge of the occurrence of a Listed Event under Section 5(b) hereof would be material under applicable federal securities laws, the District shall (i) file a notice of such occurrence with the Repository in a timely manner not in excess of 10 business days after the occurrence of the event or (ii) provide notice of such reportable event to the Dissemination Agent in format suitable for filing with the Repository in a timely manner not in excess of 10 business days after the occurrence of the event. The Dissemination Agent shall have no duty to independently prepare or file any report of Listed Events. The Dissemination Agent may conclusively rely on the District's determination of materiality pursuant to Section 5(c).

SECTION 6. Termination of Reporting Obligation. The District's obligations under this Disclosure Certificate shall terminate upon the legal defeasance, prior redemption or payment in full of all of the Bonds. If such termination occurs prior to the final maturity of the Bonds, the District shall give notice of such termination in the same manner as for a Listed Event under Section 5(a) or Section 5(b), as applicable.

SECTION 7. Dissemination Agent. The District may, from time to time, appoint or engage a Dissemination Agent (or substitute Dissemination Agent) to assist it in carrying out its obligations under this Disclosure Certificate, and may discharge any such Agent, with or without appointing a successor

Dissemination Agent. The Dissemination Agent may resign upon 15 days written notice to the District. Upon such resignation, the District shall act as its own Dissemination Agent until it appoints a successor. The Dissemination Agent shall not be responsible in any manner for the content of any notice or report prepared by the District pursuant to this Disclosure Certificate and shall not be responsible to verify the accuracy, completeness or materiality of any continuing disclosure information provided by the District. The District shall compensate the Dissemination Agent for its fees and expenses hereunder as agreed by the parties. Any entity succeeding to all or substantially all of the Dissemination Agent's corporate trust business shall be the successor Dissemination Agent without the execution or filing of any paper or further act.

SECTION 8. Amendment; Waiver. Notwithstanding any other provision of this Disclosure Certificate, the District may amend this Disclosure Certificate, and any provision of this Disclosure Certificate may be waived, provided that the following conditions are satisfied:

- (a) If the amendment or waiver relates to the provisions of Sections 3(a), 4, 5(a) or 5(b), it may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature or status of an obligated person with respect to the Bonds, or the type of business conducted;
- (b) The undertaking, as amended or taking into account such waiver, would, in the opinion of nationally recognized bond counsel, have complied with the requirements of the Rule at the time of the original issuance of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;
- (c) The amendment or waiver does not, in the opinion of nationally recognized bond counsel, materially impair the interests of the Holders or Beneficial Owners of the Bonds; and
- (d) No duties of the Dissemination Agent hereunder shall be amended without its written consent thereto.

In the event of any amendment or waiver of a provision of this Disclosure Certificate, the District shall describe such amendment in the next Annual Report, and shall include, as applicable, a narrative explanation of the reason for the amendment or waiver and its impact on the type (or in the case of a change of accounting principles, on the presentation) of financial information or operating data being presented by the District. In addition, if the amendment relates to the accounting principles to be followed in preparing financial statements, (i) notice of such change shall be given in the same manner as for a Listed Event under Section 5(b), and (ii) the Annual Report for the year in which the change is made should present a comparison (in narrative form and also, if feasible, in quantitative form) between the financial statements as prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles.

SECTION 9. Additional Information. Nothing in this Disclosure Certificate shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Certificate or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is required by this Disclosure Certificate. If the District chooses to include any information in any Annual Report or notice of occurrence of a Listed Event in addition to that which is specifically required by this Disclosure Certificate, the District shall have no obligation under this Certificate to update such information or include it in any future Annual Report or notice of occurrence of a Listed Event.

SECTION 10. Default. In the event of a failure of the District to comply with any provision of this Disclosure Certificate any Holder or Beneficial Owner of the Bonds may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Certificate. A default under this Disclosure Certificate shall not be deemed an event of default under the Resolutions, and the sole remedy under this Disclosure Certificate in the event of any failure of the District to comply with this Disclosure Certificate shall be an action to compel performance.

SECTION 11. Duties, Immunities and Liabilities of Dissemination Agent. The Dissemination Agent shall have only such duties as are specifically set forth in this Disclosure Certificate. The Dissemination Agent acts hereunder solely for the benefit of the District; this Disclosure Certificate shall confer no duties on the Dissemination Agent to the Participating Underwriters, the Holders and the Beneficial Owners. The District agrees to indemnify and save the Dissemination Agent, its officers, directors, employees and agents, harmless against any loss, expense and liabilities which it may incur arising out of or in the exercise or performance of its powers and duties hereunder, including the costs and expenses (including attorneys' fees) of defending against any claim of liability, but excluding liabilities due to the Dissemination Agent's gross negligence or willful misconduct. The obligations of the District under this Section shall survive resignation or removal of the Dissemination Agent and payment of the Bonds. The Dissemination Agent shall have no liability for the failure to report any event or any financial information as to which the District has not provided an information report in format suitable for filing with the Repository. The Dissemination Agent shall not be required to monitor or enforce the District's duty to comply with its continuing disclosure requirements hereunder.

SECTION 12. Beneficiaries. This Disclosure Certificate shall inure solely to the benefit of the District, the Dissemination Agent, the Participating Underwriters and Holders and Beneficial Owners from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Signature. This Disclosure Certificate has been executed by the undersigned on the date hereof, and such signature binds the District to the undertaking herein provided.

Date: September 7, 2016

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By \_\_\_\_\_  
Vice President for Business and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORY OF FAILURE TO FILE ANNUAL REPORT**

Name of District: SOUTHWESTERN COMMUNITY COLLEGE DISTRICT

Name of Bond Issue: 2016 General Obligation Refunding Bonds, Series A; and  
2016 General Obligation Refunding Bonds, Series B (2019 Crossover)

Date of Issuance: September 7, 2016

NOTICE IS HEREBY GIVEN that the District has not provided an Annual Report with respect to the above-named Bonds as required by the Continuing Disclosure Certificate relating to the Bonds. The District anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By \_\_\_\_\_ [form only; no signature required]

*In the opinion of Stradling Yocca Carlson & Rauth, a Professional Corporation, San Francisco, California ("Bond Counsel"), under existing statutes, regulations, rulings and judicial decisions, and assuming the accuracy of certain representations and compliance with certain covenants and requirements described herein, interest (and original issue discount) on the Bonds is excluded from gross income for federal income tax purposes and is not an item of tax preference for purposes of calculating the federal alternative minimum tax imposed on individuals and corporations. In the further opinion of Bond Counsel, interest (and original issue discount) on the Bonds is exempt from State of California personal income tax. See "TAX MATTERS" herein with respect to tax consequences relating to the Bonds.*

**\$140,000,000****SOUTHWESTERN COMMUNITY COLLEGE DISTRICT****(San Diego County, California)****Election of 2016 General Obligation Bonds, Series A****Dated: Date of Delivery****Due: August 1, as shown on the inside cover**

*This cover page contains information for quick reference only. It is not a summary of this issue. Investors must read the entire Official Statement to obtain information essential to the making of an informed investment decision. Capitalized terms used in this cover page and not otherwise defined shall have the meanings set forth herein.*

The Southwestern Community College District (San Diego County, California) Election of 2016 General Obligation Bonds, Series A (the "Bonds") were authorized at an election of the registered voters of the Southwestern Community College District (the "District") held on November 8, 2016 at which the requisite 55% of the persons voting on the proposition voted to authorize the issuance and sale of \$400,000,000 principal amount of general obligation bonds of the District. The Bonds are being issued by the District to (i) finance the acquisition, construction, modernization and equipping of District sites and facilities and (ii) pay the costs of issuing the Bonds.

The Bonds are general obligations of the District, payable solely from the proceeds of *ad valorem* property taxes. The Board of Supervisors of San Diego County (the "County") is empowered and obligated to annually levy such *ad valorem* taxes for the payment of the principal of and interest on the Bonds upon all property within the District subject to taxation by the District, without limitation as to rate or amount (except for certain personal property which is taxable at limited rates).

The Bonds will be issued in book-entry form only, and will be initially issued and registered in the name of Cede & Co. as nominee of The Depository Trust Company, New York, New York (collectively referred to herein as "DTC"). Purchasers of the Bonds (the "Beneficial Owners") will not receive physical certificates representing their interests in the Bonds, but will receive credit balances on the books of their respective nominees.

The Bonds will be issued as current interest bonds, such that interest thereon will accrue from the date of delivery thereof and be payable semiannually on February 1 and August 1 of each year, commencing February 1, 2018. The Bonds are issuable as fully registered Bonds in denominations of \$5,000 principal amount or any integral multiple thereof.

Payments of principal of and interest on the Bonds will be made by the Treasurer-Tax Collector of the County as the designated paying agent, bond registrar and transfer agent (the "Paying Agent"), to DTC for subsequent disbursement to DTC Participants (defined herein) who will remit such payments to the Beneficial Owners of the Bonds.

**The Bonds are subject to optional redemption and mandatory sinking fund redemption as further described herein.**

---

**MATURITY SCHEDULE**  
**(see inside front cover)**

---

*The Bonds are offered when, as and if issued and received by the Underwriters subject to the approval as to their legality by Stradling Yocca Carlson & Rauth, a Professional Corporation, San Francisco, California, Bond Counsel and Disclosure Counsel. Certain matters will be passed upon for the Underwriters by Kutak Rock LLP, Denver, Colorado. The Bonds, in book-entry form, will be available for delivery through the facilities of DTC in New York, New York on or about November 30, 2017.*

**PiperJaffray****Citigroup****Ramirez & Co., Inc.**

Dated: November 7, 2017

**Maturity Schedule**  
**Base CUSIP<sup>(†)</sup>: 845389**

**\$140,000,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2016 General Obligation Bonds, Series A**

**\$81,515,000 Serial Bonds**

| <b>Maturity<br/>(August 1)</b> | <b>Principal<br/>Amount</b> | <b>Interest<br/>Rate</b> | <b>Yield</b>         | <b>CUSIP<sup>(†)</sup><br/>Suffix</b> |
|--------------------------------|-----------------------------|--------------------------|----------------------|---------------------------------------|
| 2018                           | \$12,100,000                | 3.000%                   | 0.990%               | HE8                                   |
| 2019                           | 13,350,000                  | 4.000                    | 1.080                | HF5                                   |
| 2020                           | 10,790,000                  | 4.000                    | 1.140                | HG3                                   |
| 2023                           | 160,000                     | 3.000                    | 1.480                | HH1                                   |
| 2024                           | 335,000                     | 4.000                    | 1.570                | HJ7                                   |
| 2025                           | 530,000                     | 5.000                    | 1.670                | HK4                                   |
| 2026                           | 740,000                     | 5.000                    | 1.740                | HL2                                   |
| 2027                           | 970,000                     | 5.000                    | 1.840                | HM0                                   |
| 2028                           | 1,220,000                   | 5.000                    | 1.960 <sup>(1)</sup> | HN8                                   |
| 2029                           | 1,490,000                   | 5.000                    | 2.100 <sup>(1)</sup> | HP3                                   |
| 2030                           | 1,780,000                   | 5.000                    | 2.230 <sup>(1)</sup> | HQ1                                   |
| 2031                           | 2,095,000                   | 4.000                    | 2.620 <sup>(1)</sup> | HR9                                   |
| 2032                           | 2,415,000                   | 4.000                    | 2.730 <sup>(1)</sup> | HS7                                   |
| 2033                           | 2,755,000                   | 4.000                    | 2.780 <sup>(1)</sup> | HT5                                   |
| 2034                           | 3,120,000                   | 4.000                    | 2.830 <sup>(1)</sup> | HU2                                   |
| 2035                           | 3,510,000                   | 3.000                    | 3.100                | HV0                                   |
| 2036                           | 3,890,000                   | 4.000                    | 2.950 <sup>(1)</sup> | HW8                                   |
| 2037                           | 4,330,000                   | 4.000                    | 2.990 <sup>(1)</sup> | HX6                                   |
| 2038                           | 4,800,000                   | 4.000                    | 3.010 <sup>(1)</sup> | HY4                                   |
| 2039                           | 5,300,000                   | 4.000                    | 3.040 <sup>(1)</sup> | HZ1                                   |
| 2040                           | 5,835,000                   | 3.125                    | 3.260                | JA4                                   |

**\$13,300,000 - 4.000% Term Bonds due August 1, 2042 - Yield: 3.060%<sup>(1)</sup>; CUSIP<sup>(†)</sup> Suffix: JB2**

**\$45,185,000 - 4.000% Term Bonds due August 1, 2047 - Yield: 3.110%<sup>(1)</sup>; CUSIP<sup>(†)</sup> Suffix: JC0**

<sup>(1)</sup> Yield to call at par on August 1, 2027.

<sup>(†)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services ("CGS"), managed by S&P Capital IQ on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CGS database. CUSIP numbers have been assigned by an independent company not affiliated with the District, the municipal advisor, or the Underwriters and are included solely for the convenience of the registered owners of the applicable Bonds. None of the District, the municipal advisor, or the Underwriters is responsible for the selection or uses of these CUSIP numbers, and no representation is made as to their correctness on the applicable Bonds or as included herein. The CUSIP number for a specific maturity is subject to being changed after the execution and delivery of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

## APPENDIX C

### FORM OF CONTINUING DISCLOSURE CERTIFICATE

This Continuing Disclosure Certificate (the “Disclosure Certificate”) is executed and delivered by the Southwestern Community College District (the “District”) in connection with the issuance of \$140,000,000 of the District’s Election of 2016 General Obligation Bonds, Series A (the “Bonds”). The Bonds are being issued pursuant to a resolution adopted by the Governing Board of the District on October 10, 2017 (the “Resolution”). The District covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Certificate. This Disclosure Certificate is being executed and delivered by the District for the benefit of the Holders and Beneficial Owners of the Bonds and in order to assist the Participating Underwriters in complying with Securities and Exchange Commission Rule 15c2-12(b)(5).

SECTION 2. Definitions. In addition to the definitions set forth in the Resolution, which apply to any capitalized term used in this Disclosure Certificate unless otherwise defined in this Section, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 3 and 4 of this Disclosure Certificate.

“Beneficial Owner” shall mean any person which (a) has the power, directly or indirectly, to vote or consent with respect to, or to dispose of ownership of, any Bonds (including persons holding Bonds through nominees, depositories or other intermediaries), or (b) is treated as the owner of any Bonds for federal income tax purposes.

“Dissemination Agent” shall mean initially KNN Public Finance, LLC, or any successor Dissemination Agent designated in writing by the District (which may be the District) and which has filed with the District a written acceptance of such designation.

“Holders” shall mean the registered owners of the Bonds.

“Listed Events” shall mean any of the events listed in Sections 5(a) and (b) of this Disclosure Certificate.

“Official Statement” shall mean the Official Statement, dated as of November 7, 2017, relating to the offer and sale of the Bonds.

“Participating Underwriters” shall mean Piper Jaffray & Co., Citigroup Global Markets Inc., and Samuel A. Ramirez & Co., Inc., as the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

“Repository” shall mean the Municipal Securities Rulemaking Board, which can be found at <http://emma.msrb.org/>, or any other repository of disclosure information that may be designated by the Securities and Exchange Commission as such for purposes of the Rule in the future.

“Rule” shall mean Rule 15c2-12(b)(5) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as the same may be amended from time to time.

“State” shall mean the State of California.

### SECTION 3. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent to, not later than nine months after the end of the District's fiscal year (presently ending June 30), commencing with the report for the 2016-17 Fiscal Year, provide to the Repository an Annual Report which is consistent with the requirements of Section 4 of this Disclosure Certificate. The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 4 of this Disclosure Certificate; *provided* that the audited financial statements of the District may be submitted separately from the balance of the Annual Report and later than the date required above for the filing of the Annual Report if they are not available by that date. If the District's fiscal year changes, it shall give notice of such change in the same manner as for a Listed Event under Section 5(b).

(b) Not later than thirty (30) days (nor more than sixty (60) days) prior to said date the Dissemination Agent shall give notice to the District that the Annual Report shall be required to be filed in accordance with the terms of this Disclosure Certificate. Not later than fifteen (15) Business Days prior to said date, the District shall provide the Annual Report in a format suitable for reporting to the Repository to the Dissemination Agent (if other than the District). If the District is unable to provide to the Repository an Annual Report by the date required in subsection (a), the District shall send a timely notice to the Repository in substantially the form attached as Exhibit A with a copy to the Dissemination Agent. The Dissemination Agent shall not be required to file a Notice to Repository of Failure to File an Annual Report.

(c) The Dissemination Agent shall file a report with the District stating it has filed the Annual Report in accordance with its obligations hereunder, stating the date it was provided.

### SECTION 4. Content and Form of Annual Reports.

(a) The District's Annual Report shall contain or include by reference the following:

1. The audited financial statements of the District for the prior fiscal year, prepared in accordance with generally accepted accounting principles as promulgated to apply to governmental entities from time to time by the Governmental Accounting Standards Board. If the District's audited financial statements are not available by the time the Annual Report is required to be filed pursuant to Section 3(a), the Annual Report shall contain unaudited financial statements in a format similar to the financial statements contained in the final Official Statement, and the audited financial statements shall be filed in the same manner as the Annual Report when they become available.

2. Material financial information and operating data with respect to the District of the type included in the Official Statement in the following categories (to the extent not included in the District's audited financial statements):

- (A) State funding received by the District for the last completed fiscal year;
- (B) Full time equivalent student counts of the District for the last completed fiscal year;
- (C) Outstanding District indebtedness;

- (D) Summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the then-current current fiscal year;
- (E) Assessed valuation for real property located in the District for the then-current fiscal year; and
- (F) Secured *ad valorem* tax delinquencies within the District for the current year, to the extent that the County discontinues the Teeter Plan (as such term is defined in the Official Statement).

Any or all of the items listed above may be included by specific reference to other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the Repository or the Securities and Exchange Commission. If the document included by reference is a final official statement, it must be available from the Municipal Securities Rulemaking Board. The District shall clearly identify each such other document so included by reference.

(b) The Annual Report shall be filed in an electronic format, and accompanied by identifying information, as prescribed by the Municipal Securities Rulemaking Board.

#### SECTION 5. Reporting of Significant Events.

(a) Pursuant to the provisions of this Section 5(a), the District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds in a timely manner not in excess of 10 business days after the occurrence of the event:

1. principal and interest payment delinquencies.
2. tender offers.
3. defeasances.
4. rating changes.
5. adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, or Notices of Proposed Issue (IRS Form 5701-TEB).
6. unscheduled draws on the debt service reserves reflecting financial difficulties.
7. unscheduled draws on credit enhancement reflecting financial difficulties.
8. substitution of the credit or liquidity providers or their failure to perform.
9. bankruptcy, insolvency, receivership or similar event (within the meaning of the Rule) of the District. For the purposes of the event identified in this Section 5(a)(9), the event is considered to occur when any of the following occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the U.S. Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governmental body and officials or officers in possession but subject to the supervision and orders of a court or governmental authority, or the

entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority having supervision or jurisdiction over substantially all of the assets or business of the District.

(b) Pursuant to the provisions of this Section 5(b), the District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material:

1. non-payment related defaults.
2. modifications to rights of Bondholders.
3. optional, contingent or unscheduled Bond calls.
4. unless described under Section 5(a)(5) above, adverse tax opinions, material notices or determinations with respect to the tax status of the Bonds, or other material events affecting the tax status of the Bonds.
5. release, substitution or sale of property securing repayment of the Bonds.
6. the consummation of a merger, consolidation, or acquisition involving the District or the sale of all or substantially all of the assets of the District, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms.
7. appointment of a successor or additional paying agent with respect to the Bonds or the change of name of such paying agent.

(c) Whenever the District obtains knowledge of the occurrence of a Listed Event under Section 5(b) hereof, the District shall as soon as possible determine if such event would be material under applicable federal securities laws.

(d) If the District determines that knowledge of the occurrence of a Listed Event under Section 5(b) hereof would be material under applicable federal securities laws, the District shall (i) file a notice of such occurrence with the Repository in a timely manner not in excess of 10 business days after the occurrence of the event or (ii) provide notice of such reportable event to the Dissemination Agent in format suitable for filing with the Repository in a timely manner not in excess of 10 business days after the occurrence of the event. The Dissemination Agent shall have no duty to independently prepare or file any report of Listed Events. The Dissemination Agent may conclusively rely on the District's determination of materiality pursuant to Section 5(c).

SECTION 6. Termination of Reporting Obligation. The District's obligations under this Disclosure Certificate shall terminate upon the legal defeasance, prior redemption or payment in full of all of the Bonds. If such termination occurs prior to the final maturity of the Bonds, the District shall give notice of such termination in the same manner as for a Listed Event under Section 5(a) or Section 5(b), as applicable.

SECTION 7. Dissemination Agent. The District may, from time to time, appoint or engage a Dissemination Agent (or substitute Dissemination Agent) to assist it in carrying out its obligations under this Disclosure Certificate, and may discharge any such Agent, with or without appointing a successor Dissemination Agent. The Dissemination Agent may resign upon fifteen (15) days written notice to the

District. Upon such resignation, the District shall act as its own Dissemination Agent until it appoints a successor. The Dissemination Agent shall not be responsible in any manner for the content of any notice or report prepared by the District pursuant to this Disclosure Certificate and shall not be responsible to verify the accuracy, completeness or materiality of any continuing disclosure information provided by the District. The District shall compensate the Dissemination Agent for its fees and expenses hereunder as agreed by the parties. Any entity succeeding to all or substantially all of the Dissemination Agent's corporate trust business shall be the successor Dissemination Agent without the execution or filing of any paper or further act.

SECTION 8. Amendment; Waiver. Notwithstanding any other provision of this Disclosure Certificate, the District may amend this Disclosure Certificate, and any provision of this Disclosure Certificate may be waived, provided that the following conditions are satisfied:

- (a) If the amendment or waiver relates to the provisions of Sections 3(a), 4, 5(a) or 5(b), it may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature or status of an obligated person with respect to the Bonds, or the type of business conducted;
- (b) The undertaking, as amended or taking into account such waiver, would, in the opinion of nationally recognized bond counsel, have complied with the requirements of the Rule at the time of the original issuance of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;
- (c) The amendment or waiver does not, in the opinion of nationally recognized bond counsel, materially impair the interests of the Holders or Beneficial Owners of the Bonds; and
- (d) No duties of the Dissemination Agent hereunder shall be amended without its written consent thereto.

In the event of any amendment or waiver of a provision of this Disclosure Certificate, the District shall describe such amendment in the next Annual Report, and shall include, as applicable, a narrative explanation of the reason for the amendment or waiver and its impact on the type (or in the case of a change of accounting principles, on the presentation) of financial information or operating data being presented by the District. In addition, if the amendment relates to the accounting principles to be followed in preparing financial statements, (i) notice of such change shall be given in the same manner as for a Listed Event under Section 5(b), and (ii) the Annual Report for the year in which the change is made should present a comparison (in narrative form and also, if feasible, in quantitative form) between the financial statements as prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles.

SECTION 9. Additional Information. Nothing in this Disclosure Certificate shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Certificate or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is required by this Disclosure Certificate. If the District chooses to include any information in any Annual Report or notice of occurrence of a Listed Event in addition to that which is specifically required by this Disclosure Certificate, the District shall have no obligation under this Certificate to update such information or include it in any future Annual Report or notice of occurrence of a Listed Event.

SECTION 10. Default. In the event of a failure of the District to comply with any provision of this Disclosure Certificate any Holder or Beneficial Owner of the Bonds may take such actions as may be

necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Certificate. A default under this Disclosure Certificate shall not be deemed an event of default under the Resolution, and the sole remedy under this Disclosure Certificate in the event of any failure of the District to comply with this Disclosure Certificate shall be an action to compel performance.

SECTION 11. Duties, Immunities and Liabilities of Dissemination Agent. The Dissemination Agent shall have only such duties as are specifically set forth in this Disclosure Certificate. The Dissemination Agent acts hereunder solely for the benefit of the District; this Disclosure Certificate shall confer no duties on the Dissemination Agent to the Participating Underwriters, the Holders and the Beneficial Owners. The District agrees to indemnify and save the Dissemination Agent, its officers, directors, employees and agents, harmless against any loss, expense and liabilities which it may incur arising out of or in the exercise or performance of its powers and duties hereunder, including the costs and expenses (including attorney's fees) of defending against any claim of liability, but excluding liabilities due to the Dissemination Agent's gross negligence or willful misconduct. The obligations of the District under this Section shall survive resignation or removal of the Dissemination Agent and payment of the Bonds. The Dissemination Agent shall have no liability for the failure to report any event or any financial information as to which the District has not provided an information report in format suitable for filing with the Repository. The Dissemination Agent shall not be required to monitor or enforce the District's duty to comply with its continuing disclosure requirements hereunder.

SECTION 12. Beneficiaries. This Disclosure Certificate shall inure solely to the benefit of the District, the Dissemination Agent, the Participating Underwriters and Holders and Beneficial Owners from time to time of the Bonds, and shall create no rights in any other person or entity.

Dated: November 30, 2017

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By \_\_\_\_\_  
Vice President for  
Business and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORY OF FAILURE TO FILE ANNUAL REPORT**

Name of District: SOUTHWESTERN COMMUNITY COLLEGE DISTRICT

Name of Bond Issue: Election of 2016 General Obligation Bonds, Series A

Date of Issuance: November 30, 2017

NOTICE IS HEREBY GIVEN that the District has not provided an Annual Report with respect to the above-named Bonds as required by the Continuing Disclosure Certificate relating to the Bonds. The District anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By \_\_\_\_\_ [form only; no signature required]

*In the opinion of Norton Rose Fulbright US LLP, Los Angeles, California, Bond Counsel, under existing statutes, regulations, rulings and court decisions, and subject to the matters described in "TAX MATTERS – Tax-Exempt Bonds" herein, interest on the Tax-Exempt Bonds is excluded pursuant to section 103(a) of the Internal Revenue Code of 1986 from the gross income for the owners thereof for federal income tax purposes and is not included in computing the federal alternative minimum taxable income of the owners thereof. Interest on the Taxable Bonds will be included in gross income for federal income purposes. See "TAX MATTERS – Taxable Bonds" herein. In the opinion of Bond Counsel, under existing law, interest on the Bonds is exempt from personal income taxes of the State of California.*



**\$111,530,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**

**\$25,000,000**  
**Election of 2008**  
**General Obligation Bonds**  
**Series 2020E-1 (Federally Taxable) and**  
**Series 2020E-2 (Tax-Exempt)**

**\$30,000,000**  
**Election of 2016**  
**General Obligation Bonds**  
**Series 2020B-1 (Federally Taxable) and**  
**Series 2020B-2 (Tax-Exempt)**

**\$56,530,000**  
**2020 General Obligation Refunding Bonds**  
**(Federally Taxable)**

**Dated: Date of Delivery****Due: August 1, or as shown on inside cover.**

The Southwestern Community College District (the "District") Election of 2008, General Obligation Bonds, Series 2020E-1 (Federally Taxable) (the "Series E-1 Bonds") and its Election of 2008, General Obligation Bonds, Series 2020E-2 (Tax-Exempt) (the "Series E-2 Bonds," and together with the Series E-1 Bonds, the "Series E Bonds" or the "Proposition R Bonds") were authorized at an election of the registered voters of the District held on November 4, 2008, at which the requisite 55% or more of the person voting on the bond proposition ("Proposition R") voted to authorize the issuance and sale of \$389 million principal amount of general obligation bonds of the District (the "2008 Election"). The Series E Bonds are the fifth issuance of general obligation bonds of the District authorized at the 2008 Election. The District's 2020 General Obligation Refunding Bonds (Federally Taxable) (the "Refunding Bonds") are refunding bonds originally issued pursuant to Proposition R.

The District's Election of 2016, General Obligation Bonds, Series 2020B-1 (Federally Taxable) (the "Series B-1 Bonds") and its Election of 2016, General Obligation Bonds, Series 2020B-2 (Tax-Exempt) (the "Series B-2 Bonds," and together with the Series B-1 Bonds, the "Series B Bonds" or the "Proposition Z Bonds") were authorized at an election of the registered voters of the District held on November 8, 2016, at which the requisite 55% or more of the persons voting on the bond proposition ("Proposition Z") voted to authorize the issuance and sale of \$400 million principal amount of general obligation bonds of the District (the "2016 Election"). The Series B Bonds are the second issuance of general obligation bonds of the District authorized at the 2016 Election.

The Series E-1 Bonds, the Series B-1 Bonds and the Refunding Bonds are also referred to as the "Taxable Bonds." The Series E-2 Bonds and the Series B-2 Bonds are also referred to as the "Tax-Exempt Bonds." The Taxable Bonds and the Tax-Exempt Bonds will be referred to collectively, as the "Bonds." The Bonds are being issued under the laws of the State of California (the "State") and pursuant to resolutions of the Governing Board of the District, adopted on June 9, 2020.

The Bonds are dated the date of delivery. The Bonds will mature on the dates and in the amounts and bear interest at the rates shown on the inside cover herein. The Bonds will be issued in denominations of \$5,000 principal amount or integral multiples thereof, and are payable as to principal amount or redemption price at the office of the San Diego County Treasurer-Tax Collector (the "Paying Agent"). The Bonds will be issued as current interest bonds. The Tax-Exempt Bonds and the Refunding Bonds are payable semiannually on February 1 and August 1 of each year, commencing February 1, 2021.

The Bonds are issued in fully registered form and, when delivered, will be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"). DTC will act as securities depository of the Bonds as described herein under the caption "THE BONDS – Book-Entry Only System."

**The Bonds are subject to redemption prior to maturity as described herein.\*** See "THE BONDS – Optional Redemption" and "– Mandatory Sinking Fund Redemption" herein.

The Bonds are general obligations of the District, secured and payable solely from *ad valorem* property taxes collected against taxable properties within the boundaries of the District. The Bonds are general obligations of the District only and are not obligations of San Diego County, the State of California or any of its other political subdivisions. The Board of Supervisors of San Diego County has the power and is obligated to levy and collect *ad valorem* property taxes for each fiscal year upon the taxable property of the District in an amount at least sufficient, together with other moneys available for such purpose, to pay the principal of, and premium, if any, and interest on each Bond as the same becomes due and payable.

---

**MATURITY SCHEDULE**  
On Inside Cover

---

**THIS COVER PAGE CONTAINS CERTAIN INFORMATION FOR QUICK REFERENCE ONLY. IT IS NOT A SUMMARY OF THIS ISSUE. INVESTORS MUST READ THE ENTIRE OFFICIAL STATEMENT TO OBTAIN INFORMATION ESSENTIAL TO THE MAKING OF AN INFORMED INVESTMENT DECISION.**

*The Bonds will be offered when, as and if issued and received by the Underwriter subject to the approval of legality by Norton Rose Fulbright US LLP, Los Angeles, Bond Counsel, and certain other conditions. Norton Rose Fulbright US LLP, Los Angeles is also acting as Disclosure Counsel for the issue. Certain legal matters will be passed upon for the Underwriter by its counsel, Katten Muchin Rosenman LLP, New York, New York. It is anticipated that the Bonds will be available through the facilities of DTC on or about August 5, 2020.*

**RBC CAPITAL MARKETS****MORGAN STANLEY****MISCHLER FINANCIAL GROUP, INC.**

Dated: July 22, 2020

## MATURITY SCHEDULES

**\$1,860,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2008, General Obligation Bonds**  
**Series 2020E-1**  
**(Federally Taxable)**

| <b><u>Maturity Date</u></b><br><b><u>(October 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b> | <b><u>CUSIP<sup>(1)</sup></u></b><br><b><u>(845389)</u></b> |
|----------------------------------------------------------|-------------------------------------------------|----------------------------------------------|---------------------|-------------------------------------------------------------|
| 2020                                                     | \$1,860,000                                     | 0.250%                                       | 0.250%              | JW 6                                                        |

**\$23,140,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2008, General Obligation Bonds**  
**Series 2020E-2**  
**(Tax-Exempt)**

| <b><u>Maturity Date</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b>  | <b><u>CUSIP<sup>(1)</sup></u></b><br><b><u>(845389)</u></b> |
|---------------------------------------------------------|-------------------------------------------------|----------------------------------------------|----------------------|-------------------------------------------------------------|
| 2022                                                    | \$1,675,000                                     | 3.000%                                       | 0.080%               | JX 4                                                        |
| 2023                                                    | 1,820,000                                       | 3.000                                        | 0.100                | JY 2                                                        |
| 2024                                                    | 1,050,000                                       | 3.000                                        | 0.150                | JZ 9                                                        |
| 2025                                                    | 1,075,000                                       | 3.000                                        | 0.210                | KA 2                                                        |
| 2026                                                    | 1,095,000                                       | 4.000                                        | 0.350                | KB 0                                                        |
| 2027                                                    | 1,125,000                                       | 4.000                                        | 0.480                | KC 8                                                        |
| 2028                                                    | 1,155,000                                       | 4.000                                        | 0.560                | KD 6                                                        |
| 2029                                                    | 1,185,000                                       | 4.000                                        | 0.620 <sup>(c)</sup> | KE 4                                                        |
| 2030                                                    | 1,215,000                                       | 4.000                                        | 0.700 <sup>(c)</sup> | KF 1                                                        |
| 2031                                                    | 1,240,000                                       | 4.000                                        | 0.800 <sup>(c)</sup> | KG 9                                                        |
| 2032                                                    | 1,260,000                                       | 4.000                                        | 0.960 <sup>(c)</sup> | KH 7                                                        |
| 2033                                                    | 1,285,000                                       | 4.000                                        | 1.120 <sup>(c)</sup> | KJ 3                                                        |
| 2034                                                    | 1,300,000                                       | 4.000                                        | 1.180 <sup>(c)</sup> | KK 0                                                        |
| 2035                                                    | 1,315,000                                       | 4.000                                        | 1.280 <sup>(c)</sup> | KL 8                                                        |
| 2036                                                    | 1,325,000                                       | 4.000                                        | 1.380 <sup>(c)</sup> | KM 6                                                        |
| 2037                                                    | 1,340,000                                       | 4.000                                        | 1.440 <sup>(c)</sup> | KN 4                                                        |
| 2038                                                    | 1,340,000                                       | 4.000                                        | 1.500 <sup>(c)</sup> | KP 9                                                        |
| 2039                                                    | 1,340,000                                       | 4.000                                        | 1.550 <sup>(c)</sup> | KQ 7                                                        |

<sup>(c)</sup> Yield to call at par on August 1, 2028.

<sup>(1)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services, managed by S&P Capital IQ on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

## MATURITY SCHEDULES

**\$1,485,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2016, General Obligation Bonds**  
**Series 2020B-1**  
**(Federally Taxable)**

| <b><u>Maturity Date</u></b><br><b><u>(October 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b> | <b><u>CUSIP<sup>(1)</sup></u></b><br><b><u>(845389)</u></b> |
|----------------------------------------------------------|-------------------------------------------------|----------------------------------------------|---------------------|-------------------------------------------------------------|
| 2020                                                     | \$1,485,000                                     | 0.250%                                       | 0.250%              | KR5                                                         |

**\$28,515,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2016, General Obligation Bonds**  
**Series 2020B-2**  
**(Tax-Exempt)**

| <b><u>Maturity Date</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b>  | <b><u>CUSIP<sup>(1)</sup></u></b><br><b><u>(845389)</u></b> |
|---------------------------------------------------------|-------------------------------------------------|----------------------------------------------|----------------------|-------------------------------------------------------------|
| 2022                                                    | \$10,210,000                                    | 3.000%                                       | 0.080%               | KS 3                                                        |
| 2023                                                    | 1,025,000                                       | 3.000                                        | 0.100                | KT 1                                                        |
| 2024                                                    | 385,000                                         | 3.000                                        | 0.150                | KU 8                                                        |
| 2025                                                    | 435,000                                         | 3.000                                        | 0.210                | KV 6                                                        |
| 2026                                                    | 490,000                                         | 4.000                                        | 0.350                | KW 4                                                        |
| 2027                                                    | 555,000                                         | 4.000                                        | 0.480                | KX 2                                                        |
| 2028                                                    | 625,000                                         | 4.000                                        | 0.560                | KY 0                                                        |
| 2029                                                    | 695,000                                         | 4.000                                        | 0.620 <sup>(c)</sup> | KZ 7                                                        |
| 2030                                                    | 775,000                                         | 4.000                                        | 0.700 <sup>(c)</sup> | LA 1                                                        |
| 2031                                                    | 860,000                                         | 4.000                                        | 0.800 <sup>(c)</sup> | LB 9                                                        |
| 2032                                                    | 945,000                                         | 4.000                                        | 0.960 <sup>(c)</sup> | LC 7                                                        |
| 2033                                                    | 1,040,000                                       | 4.000                                        | 1.120 <sup>(c)</sup> | LD 5                                                        |
| 2034                                                    | 1,140,000                                       | 4.000                                        | 1.180 <sup>(c)</sup> | LE 3                                                        |
| 2035                                                    | 1,250,000                                       | 4.000                                        | 1.280 <sup>(c)</sup> | LF 0                                                        |
| 2036                                                    | 1,360,000                                       | 4.000                                        | 1.380 <sup>(c)</sup> | LG 8                                                        |
| 2037                                                    | 1,480,000                                       | 4.000                                        | 1.440 <sup>(c)</sup> | LH 6                                                        |
| 2038                                                    | 1,610,000                                       | 4.000                                        | 1.500 <sup>(c)</sup> | LJ 2                                                        |
| 2039                                                    | 1,745,000                                       | 4.000                                        | 1.550 <sup>(c)</sup> | LK 9                                                        |
| 2040                                                    | 1,890,000                                       | 4.000                                        | 1.600 <sup>(c)</sup> | LL 7                                                        |

<sup>(c)</sup> Priced to call at par on August 1, 2028.

<sup>(1)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services, managed by S&P Capital IQ on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

## MATURITY SCHEDULE

**\$56,530,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**2020 General Obligation Refunding Bonds**  
**(Federally Taxable)**

**\$35,780,000 Serial Bonds**

| <b>Maturity Date<br/>(August 1)</b> | <b>Principal<br/>Amount</b> | <b>Interest<br/>Rate</b> | <b>Yield</b> | <b>CUSIP<sup>(1)</sup><br/>(845389)</b> |
|-------------------------------------|-----------------------------|--------------------------|--------------|-----------------------------------------|
| 2021                                | \$1,600,000                 | 0.369%                   | 0.369%       | JD 8                                    |
| 2022                                | 1,000,000                   | 0.479                    | 0.479        | JE 6                                    |
| 2023                                | 1,000,000                   | 0.600                    | 0.600        | JF 3                                    |
| 2024                                | 1,000,000                   | 0.741                    | 0.741        | JG 1                                    |
| 2025                                | 1,955,000                   | 0.891                    | 0.891        | JH 9                                    |
| 2026                                | 2,040,000                   | 1.147                    | 1.147        | JJ 5                                    |
| 2027                                | 2,145,000                   | 1.347                    | 1.347        | JK 2                                    |
| 2028                                | 2,255,000                   | 1.495                    | 1.495        | JL 0                                    |
| 2029                                | 2,370,000                   | 1.595                    | 1.595        | JM 8                                    |
| 2030                                | 2,490,000                   | 1.695                    | 1.695        | JN 6                                    |
| 2031                                | 2,620,000                   | 1.835                    | 1.835        | JP 1                                    |
| 2032                                | 2,760,000                   | 1.925                    | 1.925        | JQ 9                                    |
| 2033                                | 2,900,000                   | 2.035                    | 2.035        | JR 7                                    |
| 2034                                | 3,050,000                   | 2.135                    | 2.135        | JS 5                                    |
| 2035                                | 3,215,000                   | 2.185                    | 2.185        | JT 3                                    |
| 2036                                | 3,380,000                   | 2.245                    | 2.245        | JU 0                                    |

**\$20,750,000 – 2.631% Term Bonds due August 1, 2040 – Yield 2.631%; CUSIP<sup>(1)</sup>: 845389JV8**

<sup>(1)</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein is provided by CUSIP Global Services, managed by S&P Capital IQ on behalf of The American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

## APPENDIX D

### FORM OF CONTINUING DISCLOSURE UNDERTAKING

This Continuing Disclosure Undertaking (this “Disclosure Undertaking”) is executed and delivered by Southwestern Community College District (the “District”) as of August 5, 2020 in connection with the execution and delivery of its (i) Election of 2008, General Obligation Bonds, Series 2020E-1 (Federally Taxable), (ii) Election of 2008, General Obligation Bonds, Series 2020E-2 (Tax-Exempt), (iii) Election of 2016, General Obligation Bonds, Series 2020B-1 (Federally Taxable), (iv) Election of 2016, General Obligation Bonds, Series 2020B-2 (Tax-Exempt) and (v) 2020 General Obligation Refunding Bonds (Federally Taxable) (collectively, the “Bonds”). The Bonds are being issued pursuant to Resolutions adopted by the Governing Board of the District on June 9, 2020 (the “Resolution”). Capitalized terms used but not defined herein shall have the meanings ascribed thereto in the respective Resolution.

In consideration of the execution and delivery of the Bonds by the District and the purchase of such Bonds by the Underwriters described below, the District hereby covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Undertaking. This Disclosure Undertaking is being executed and delivered by the District for the benefit of the Bondholders and in order to assist the Participating Underwriters in complying with Rule 15c2-12(b)(5) (the “Rule”) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended.

SECTION 2. Additional Definitions. In addition to the above definitions and the definitions set forth in the Resolution, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 4 and 5 of this Disclosure Undertaking.

“Bondholder” or “Holder” means any holder of the Bonds or any beneficial owner of the Bonds so long as they are immobilized with DTC.

“Commission” means the Securities and Exchange Commission.

“Dissemination Agent” shall mean KNN Public Finance or any alternate or successor dissemination agent, designated in writing by the Superintendent/President or the Assistant Superintendent/Vice President for Business and Financial Affairs (or otherwise by the District), which Dissemination Agent has evidenced its acceptance in writing.

“Financial Obligation” as used in this Disclosure Undertaking is defined in the Rule as (i) a debt obligation; (ii) derivative instrument entered into in connection with, or pledged as a security or a source of payment for, an existing or planned debt obligation; or (iii) guarantee of (i) or (ii). The term “Financial Obligation” shall not include municipal securities as to which a final official statement has been provided to the MSRB consistent with the Rule.

“Listed Event” means any of the events listed in Section 6 of this Disclosure Undertaking.

“MSRB” shall mean the Municipal Securities Rulemaking Board, through its Electronic Municipal Market Access (“EMMA”) website located at <http://emma.msrb.org>, or any other entity designated or authorized by the Commission.

“Participating Underwriters” shall mean RBC Capital Markets, Morgan Stanley & Co. LLC, and Mischler Financial Group, Inc., as the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

SECTION 3. CUSIP Numbers and Final Official Statement. The CUSIP Numbers for the Bonds have been assigned. The Final Official Statement relating to the Bonds is dated July 22, 2020.

SECTION 4. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent (if other than the District), not later than nine months after the end of the District’s fiscal year (currently ending June 30), commencing on or prior to March 31, 2021 with the report for the fiscal year ending June 30, 2020, to provide to the MSRB, in a format prescribed by the MSRB, an Annual Report that is consistent with the requirements of Section 5 of this Disclosure Undertaking. As of the date of this Certificate, the format prescribed by the MSRB is the Electronic Municipal Market Access system. Information regarding requirement for submissions to EMMA is available at <http://emma.msrb.org>.

The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 5 of this Disclosure Undertaking; provided that the audited financial statements of the District may be submitted, when and if available, separately from the balance of the relevant Annual Report. If the District does not have audited financial statements available when it submits the relevant Annual Report, it shall submit unaudited financial statements, as described in Section 5(a) below.

(b) Not later than 15 Business Days prior to the filing date required in paragraph (a) above for providing the Annual Report to the MSRB, the District shall provide the Annual Report to the Dissemination Agent (if other than the District). If the District is unable to provide to the MSRB an Annual Report by the date required in paragraph (a) above, the District shall send a notice to the MSRB in substantially the form attached as Exhibit A.

(c) The Dissemination Agent (if other than the District) shall:

- (i) determine each year prior to the date for providing the Annual Report the format for filing with the MSRB; and
- (ii) file a report with the District certifying that the Annual Report has been provided pursuant to this Disclosure Undertaking, stating the date it was provided to the MSRB.

SECTION 5. Content of Annual Report. The District’s Annual Report shall contain or incorporate by reference the following:

(a) Audited financial statements of the District for the preceding fiscal year, prepared in conformity with generally accepted accounting principles as prescribed by the Governmental Accounting Standards Board and the American Institute of Certified Public Accountants. If audited financial information is not available by the time the Annual Report is required to be filed pursuant to Section 4(a) hereof, the financial information included in the Annual Report may be unaudited, and the District will provide audited financial information to the MSRB as soon as practical after it has been made available to the District.

(b) Operating data, including the following information with respect to the District's preceding fiscal year (to the extent not included in the audited financial statements described in paragraph (a) above):

- (i) State funding received by the District for the last completed fiscal year;
- (ii) Outstanding District indebtedness;
- (iii) Secured *ad valorem* tax delinquencies, if the County is no longer on the Teeter Plan;
- (iv) Full-time equivalent students, or equivalent information, as may be reasonably available;
- (v) Summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year; and
- (vi) Assessed valuations.

(c) Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the MSRB or to the Commission. If the document incorporated by reference is a final official statement, it must be available from the MSRB. The District shall clearly identify each other document so incorporated by reference.

#### SECTION 6. Reporting of Designated Listed Events.

(a) The District agrees to provide or cause to be provided to the MSRB notice of the occurrence of any of the following events with respect to the Bonds not later than ten (10) Business Days after the occurrence of the event:

- (i) Principal and interest payment delinquencies;
- (ii) Unscheduled draws on any debt service reserves reflecting financial difficulties;
- (iii) Unscheduled draws on any credit enhancements reflecting financial difficulties;
- (iv) Substitution of credit or liquidity providers, or their failure to perform;
- (v) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability or of a Notice of Proposed Issue (IRS Form 5701 TEB);
- (vi) Tender offers;
- (vii) Defeasances;
- (viii) Rating changes;
- (ix) Bankruptcy, insolvency, receivership or similar event of the District; or

(x) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of a Financial Obligation of the District, any of which reflect financial difficulties.

For purposes of item (ix) above, the described event shall be deemed to occur when any of the following shall occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the United States Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or other governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority have supervision or jurisdiction over substantially all of the assets or business of the District.

(b) The District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material, not later than ten (10) business days after the occurrence of the event:

(i) Unless described in paragraph 6(a)(v) hereof, other material notices or determinations with respect to the tax status of the Bonds or other material events affecting the tax status of the Bonds;

(ii) Modifications to rights of Owners;

(iii) Optional, unscheduled or contingent Bond calls;

(iv) Release, substitution or sale of property securing repayment of the Bonds, if applicable;

(v) Non-payment related defaults;

(vi) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms;

(vii) Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent; or

(viii) Incurrence of a Financial Obligation, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation, any of which affect security holders.

(c) The District shall give, or cause to be given, in a timely manner, notice of a failure to provide the annual financial information on or before the date specified in Section 4 hereof, as provided in Section 4(b) hereof.

(d) If the District determines that the occurrence of a Listed Event described in Section 6(b) hereof is material under applicable federal security laws, the District shall within ten (10) business days of occurrence file a notice of such occurrence with the MSRB in electronic format, accompanied by such identifying information as is prescribed by the MSRB. Notwithstanding the foregoing, notice of the

Listed Event described in subsections (a)(vii) or (b)(iii) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolution.

SECTION 7. Termination of Reporting Obligation. The District's obligations under this Disclosure Undertaking shall terminate when the District is no longer an obligated person with respect to the Bonds, as provided in the Rule, upon the defeasance, prior redemption or payment in full of all of the Bonds.

SECTION 8. Dissemination Agent. The Superintendent/President or Assistant Superintendent/Vice President for Business and Financial Affairs may, from time to time, appoint or engage an alternate or successor Dissemination Agent to assist in carrying out the District's obligations under this Disclosure Undertaking, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. If at any time there is no other designated Dissemination Agent in place, the District shall act as the Dissemination Agent.

The Dissemination Agent, if other than the District, shall be paid compensation for its services provided hereunder, and reimbursement for its costs and expenses. The Dissemination Agent shall not be responsible for the form or content of any document provided by the District hereunder.

SECTION 9. Amendment. Notwithstanding any other provision of this Disclosure Undertaking, the District may amend this Disclosure Undertaking under the following conditions, provided no amendment to this Disclosure Undertaking shall be made that affects the rights, duties or obligations of the Dissemination Agent without its written consent:

(a) The amendment may be made only in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of the obligated person, or type of business conducted;

(b) This Disclosure Undertaking, as amended, would have complied with the requirements of the Rule at the time of the primary offering of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment does not materially impair the interests of Holders, as determined either by parties unaffiliated with the District or another obligated person (such as the Bond Counsel) or by the written approval of the Bondholders; provided, that the Annual Report containing the amended operating data or financial information shall explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided.

SECTION 10. Additional Information. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Disclosure Undertaking, the District shall have no obligation under this Disclosure Undertaking to update such information or to include it in any future disclosure or notice of occurrence of a Designated Material Event.

Nothing in this Disclosure Undertaking shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Undertaking or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Designated Material Event, in addition to that which is required by this Disclosure Undertaking.

SECTION 11. Default. The District shall give notice to the MSRB of any failure to provide the Annual Report when the same is due hereunder, which notice shall be given prior to July 1 of that year. In the event of a failure of the District to comply with any provision of this Disclosure Undertaking, any Bondholder may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Undertaking. A default under this Disclosure Undertaking shall not be deemed an event of default under the Resolution, and the sole remedy under this Disclosure Undertaking in the event of any failure of the District to comply with this Disclosure Undertaking shall be an action to compel performance.

SECTION 12. Beneficiaries. This Disclosure Undertaking shall inure solely to the benefit of the District, the Dissemination Agent, the Underwriters and Holders from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Record Keeping. The District shall maintain records of all Annual Reports and notices of material Listed Events including the content of such disclosure, the names of the entities with whom the such disclosure were filed and the date of filing such disclosure.

SECTION 14. Governing Law. This Disclosure Undertaking shall be governed by the laws of the State of California, applicable to contracts made and performed in such State of California.

*[Remainder of page intentionally left blank.]*

IN WITNESS WHEREOF, Southwestern Community College District has executed this Continuing Disclosure Undertaking as of the date first set forth herein.

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By: \_\_\_\_\_  
Assistant Superintendent/Vice President for  
Business and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORIES OF FAILURE TO FILE ANNUAL REPORT**

Name of Issuer: Southwestern Community College District (San Diego County, California)

Name of Issues: \$1,860,000 Election of 2008, General Obligation Bonds, Series 2020E-1 (Federally Taxable)  
\$23,140,000 Election of 2008, General Obligation Bonds, Series 2020E-2 (Tax-Exempt)  
\$1,485,000 Election of 2016, General Obligation Bonds, Series 2020B-1 (Federally Taxable)  
\$28,515,000 Election of 2016, General Obligation Bonds, Series 2020B-2 (Tax-Exempt)  
\$56,530,000 2020 General Obligation Refunding Bonds (Federally Taxable)

Date of Issuance: August 5, 2020

NOTICE IS HEREBY GIVEN that the above-named Issuer has not provided an Annual Report with respect to the above-named Bonds as required by Section 4(a) of the Disclosure Undertaking dated as of \_\_\_\_\_, 2020. The Issuer anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

[ISSUER/DISSEMINATION AGENT]

By: \_\_\_\_\_

*In the opinion of Norton Rose Fulbright US LLP, Los Angeles, California, Bond Counsel, under existing statutes, regulations, rulings and court decisions, and subject to the matters described in "TAX MATTERS – Tax-Exempt Bonds" herein, interest on the Tax-Exempt Bonds, is excluded pursuant to section 103(a) of the Internal Revenue Code of 1986 from the gross income for the owners thereof for federal income tax purposes and is not included in computing the federal alternative minimum taxable income of the owners thereof. Interest on the Taxable Bonds will be included in gross income for federal income purposes. See "TAX MATTERS – Taxable Bonds" herein. In the opinion of Bond Counsel, under existing law, interest on the Bonds is exempt from personal income taxes of the State of California.*



**\$196,970,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**

**\$46,000,000**  
**Election of 2016, General Obligation Bonds**  
**Series 2021C**

**\$150,970,000**  
**2021 General Obligation Refunding Bonds**  
**(Federally Taxable)**

**Dated: Date of Delivery****Due: August 1, as shown on inside cover.**

The Southwestern Community College District (the "District") Election of 2016, General Obligation Bonds, Series 2021C (the "New Money Bonds") were authorized at an election of the registered voters of the District held on November 8, 2016, at which the requisite 55% or more of the persons voting on the bond proposition ("Proposition Z") voted to authorize the issuance and sale of \$400 million principal amount of general obligation bonds of the District (the "2016 Election"). The New Money Bonds are the third issuance of general obligation bonds of the District authorized at the 2016 Election. The District's 2021 General Obligation Refunding Bonds (Federally Taxable) (the "Refunding Bonds," and together with the New Money Bonds, the "Bonds") are refunding bonds originally issued pursuant to an election of the registered voters of the District held on November 4, 2008, at which the requisite 55% or more of the persons voting on the bond proposition ("Proposition R") voted to authorize the issuance and sale of \$389 million principal amount of general obligation bonds of the District (the "2008 Election").

The Bonds are being issued under the laws of the State of California (the "State") and pursuant to resolutions of the Governing Board of the District, adopted on February 9, 2021. The Bonds are dated the date of delivery. The Bonds will mature on the dates and in the amounts and bear interest at the rates shown on the inside cover herein. The Bonds will be issued in denominations of \$5,000 principal amount or integral multiples thereof, and are payable as to principal amount or redemption price at the office of the San Diego County Treasurer-Tax Collector (the "Paying Agent"). The Bonds will be issued as current interest bonds. Interest on the Bonds is payable semiannually on February 1 and August 1 of each year, commencing August 1, 2021.

The Bonds are issued in fully registered form and, when delivered, will be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"). DTC will act as securities depository of the Bonds as described herein under the caption "THE BONDS – Book-Entry Only System."

**The Bonds are subject to redemption prior to maturity as described herein.** See "THE BONDS – Optional Redemption" and "– Mandatory Sinking Fund Redemption" herein.

The Bonds are general obligations of the District, secured and payable solely from *ad valorem* property taxes collected against taxable properties within the boundaries of the District. The Bonds are general obligations of the District only and are not obligations of San Diego County, the State of California or any of its other political subdivisions. The Board of Supervisors of San Diego County has the power and is obligated to levy and collect *ad valorem* property taxes for each fiscal year upon the taxable property of the District in an amount at least sufficient, together with other moneys available for such purpose, to pay the principal of, and premium, if any, and interest on each Bond as the same becomes due and payable.

---

**MATURITY SCHEDULE**  
 On Inside Cover

---

**THIS COVER PAGE CONTAINS CERTAIN INFORMATION FOR QUICK REFERENCE ONLY. IT IS NOT A SUMMARY OF THIS ISSUE. INVESTORS MUST READ THE ENTIRE OFFICIAL STATEMENT TO OBTAIN INFORMATION ESSENTIAL TO THE MAKING OF AN INFORMED INVESTMENT DECISION.**

*The Bonds will be offered when, as and if issued and received by the Underwriter subject to the approval of legality by Norton Rose Fulbright US LLP, Los Angeles, Bond Counsel, and certain other conditions. Norton Rose Fulbright US LLP, Los Angeles is also acting as Disclosure Counsel for the issue. Certain legal matters will be passed upon for the Underwriter by its counsel, Nixon Peabody LLP, Los Angeles, California. It is anticipated that the Bonds will be available through the facilities of DTC on or about March 24, 2021.*

**MORGAN STANLEY****RBC CAPITAL MARKETS****MISCHLER FINANCIAL GROUP, INC.**

## MATURITY SCHEDULES

**\$46,000,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2016, General Obligation Bonds**  
**Series 2021C**

**\$27,515,000 Serial Bonds**

| <b><u>Maturity Date</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b> | <b><u>CUSIP<sup>†</sup></u></b><br><b><u>(845389)</u></b> |
|---------------------------------------------------------|-------------------------------------------------|----------------------------------------------|---------------------|-----------------------------------------------------------|
| 2022                                                    | \$1,000,000                                     | 3.000%                                       | 0.070%              | MJ1                                                       |
| 2023                                                    | 1,575,000                                       | 3.000                                        | 0.120               | MK8                                                       |
| 2024                                                    | 930,000                                         | 4.000                                        | 0.240               | ML6                                                       |
| 2025                                                    | 415,000                                         | 4.000                                        | 0.360               | MM4                                                       |
| 2026                                                    | 500,000                                         | 4.000                                        | 0.480               | MN2                                                       |
| 2027                                                    | 590,000                                         | 4.000                                        | 0.650               | MP7                                                       |
| 2028                                                    | 690,000                                         | 4.000                                        | 0.810               | MQ5                                                       |
| 2029                                                    | 795,000                                         | 4.000                                        | 0.960               | MR3                                                       |
| 2030                                                    | 910,000                                         | 4.000                                        | 1.030               | MS1                                                       |
| 2031                                                    | 1,025,000                                       | 4.000                                        | 1.130               | MT9                                                       |
| 2032                                                    | 1,155,000                                       | 4.000                                        | 1.260 <sup>C</sup>  | MU6                                                       |
| 2033                                                    | 1,295,000                                       | 4.000                                        | 1.340 <sup>C</sup>  | MV4                                                       |
| 2034                                                    | 1,440,000                                       | 4.000                                        | 1.430 <sup>C</sup>  | MW2                                                       |
| 2035                                                    | 1,595,000                                       | 4.000                                        | 1.520 <sup>C</sup>  | MX0                                                       |
| 2036                                                    | 1,760,000                                       | 4.000                                        | 1.590 <sup>C</sup>  | MY8                                                       |
| 2037                                                    | 1,935,000                                       | 4.000                                        | 1.650 <sup>C</sup>  | MZ5                                                       |
| 2038                                                    | 2,125,000                                       | 3.000                                        | 1.920 <sup>C</sup>  | NA9                                                       |
| 2039                                                    | 2,300,000                                       | 3.000                                        | 2.000 <sup>C</sup>  | NB7                                                       |
| 2040                                                    | 2,490,000                                       | 3.000                                        | 2.090 <sup>C</sup>  | NC5                                                       |
| 2041                                                    | 2,990,000                                       | 3.000                                        | 2.130 <sup>C</sup>  | ND3                                                       |

**\$18,485,000 – 2.375% Term Bonds due August 1, 2046 – Yield 2.500% CUSIP<sup>†</sup> 845389 NE1**

<sup>C</sup> Yield to optional redemption at par on August 1, 2031.

<sup>†</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein are provided by CUSIP Global Services, managed by S&P Global Market Intelligence on behalf of the American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the New Money Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the New Money Bonds.

**\$150,970,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**2021 General Obligation Refunding Bonds**  
**(Federally Taxable)**

**\$103,110,000 Serial Bonds**

| <b><u>Maturity Date</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest</u></b><br><b><u>Rate</u></b> | <b><u>Yield</u></b> | <b><u>CUSIP<sup>†</sup></u></b><br><b><u>(845389)</u></b> |
|---------------------------------------------------------|-------------------------------------------------|----------------------------------------------|---------------------|-----------------------------------------------------------|
| 2022                                                    | \$ 530,000                                      | 0.265%                                       | 0.265%              | LM5                                                       |
| 2023                                                    | 800,000                                         | 0.365                                        | 0.365               | LN3                                                       |
| 2024                                                    | 1,105,000                                       | 0.628                                        | 0.628               | LP8                                                       |
| 2025                                                    | 680,000                                         | 1.120                                        | 1.120               | LQ6                                                       |
| 2026                                                    | 1,125,000                                       | 1.220                                        | 1.220               | LR4                                                       |
| 2027                                                    | 1,600,000                                       | 1.531                                        | 1.531               | LS2                                                       |
| 2028                                                    | 2,115,000                                       | 1.731                                        | 1.731               | LT0                                                       |
| 2029                                                    | 2,660,000                                       | 1.944                                        | 1.944               | LU7                                                       |
| 2030                                                    | 3,260,000                                       | 2.044                                        | 2.044               | LV5                                                       |
| 2031                                                    | 3,890,000                                       | 2.144                                        | 2.144               | LW3                                                       |
| 2032                                                    | 4,575,000                                       | 2.294                                        | 2.294               | LX1                                                       |
| 2033                                                    | 5,310,000                                       | 2.394                                        | 2.394               | LY9                                                       |
| 2034                                                    | 6,105,000                                       | 2.494                                        | 2.494               | LZ6                                                       |
| 2035                                                    | 6,955,000                                       | 2.544                                        | 2.544               | MA0                                                       |
| 2036                                                    | 7,865,000                                       | 2.594                                        | 2.594               | MB8                                                       |
| 2037                                                    | 8,845,000                                       | 2.644                                        | 2.644               | MC6                                                       |
| 2038                                                    | 9,840,000                                       | 2.694                                        | 2.694               | MD4                                                       |
| 2039                                                    | 10,830,000                                      | 2.744                                        | 2.744               | ME2                                                       |
| 2040                                                    | 11,885,000                                      | 2.794                                        | 2.794               | MF9                                                       |
| 2041                                                    | 13,135,000                                      | 2.844                                        | 2.844               | MG7                                                       |

**\$47,860,000 – 3.118% Term Bonds due August 1, 2044 – Yield 3.118%; CUSIP<sup>†</sup> 845389 MH5**

<sup>†</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein are provided by CUSIP Global Services, managed by S&P Global Market Intelligence on behalf of the American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Refunding Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Refunding Bonds.

## APPENDIX D

### FORM OF CONTINUING DISCLOSURE UNDERTAKING

This Continuing Disclosure Undertaking (this “Disclosure Undertaking”) is executed and delivered by Southwestern Community College District (the “District”) as of March 24, 2021 in connection with the execution and delivery of its (i) Election of 2016, General Obligation Bonds, Series 2021C and (ii) 2021 General Obligation Refunding Bonds (Federally Taxable) (collectively, the “Bonds”). The Bonds are being issued pursuant to Resolutions adopted by the Governing Board of the District on February 9, 2021 (the “Resolutions”). Capitalized terms used but not defined herein shall have the meanings ascribed thereto in the respective Resolutions.

In consideration of the execution and delivery of the Bonds by the District and the purchase of such Bonds by the Underwriters described below, the District hereby covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Undertaking. This Disclosure Undertaking is being executed and delivered by the District for the benefit of the Bondholders and in order to assist the Participating Underwriters in complying with Rule 15c2-12(b)(5) (the “Rule”) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended.

SECTION 2. Additional Definitions. In addition to the above definitions and the definitions set forth in the Resolutions, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 4 and 5 of this Disclosure Undertaking.

“Bondholder” or “Holder” means any holder of the Bonds or any beneficial owner of the Bonds so long as they are immobilized with DTC.

“Commission” means the Securities and Exchange Commission.

“Dissemination Agent” shall mean KNN Public Finance or any alternate or successor dissemination agent, designated in writing by the Superintendent/President or the Assistant Superintendent/Vice President for Business and Financial Affairs (or otherwise by the District), which Dissemination Agent has evidenced its acceptance in writing.

“Financial Obligation” as used in this Disclosure Undertaking is defined in the Rule as (i) a debt obligation; (ii) derivative instrument entered into in connection with, or pledged as a security or a source of payment for, an existing or planned debt obligation; or (iii) guarantee of (i) or (ii). The term “Financial Obligation” shall not include municipal securities as to which a final official statement has been provided to the MSRB consistent with the Rule.

“Listed Event” means any of the events listed in Section 6 of this Disclosure Undertaking.

“MSRB” shall mean the Municipal Securities Rulemaking Board, through its Electronic Municipal Market Access (“EMMA”) website located at <http://emma.msrb.org>, or any other entity designated or authorized by the Commission.

“Participating Underwriters” shall mean Morgan Stanley & Co. LLC, RBC Capital Markets and Mischler Financial Group, Inc., as the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

SECTION 3. CUSIP Numbers and Final Official Statement. The CUSIP Numbers for the Bonds have been assigned. The Final Official Statement relating to the Bonds is dated March 9, 2021.

SECTION 4. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent (if other than the District), not later than nine months after the end of the District's fiscal year (currently ending June 30), commencing on or prior to March 31, 2022 with the report for the fiscal year ending June 30, 2021, to provide to the MSRB, in a format prescribed by the MSRB, an Annual Report that is consistent with the requirements of Section 5 of this Disclosure Undertaking. As of the date of this Certificate, the format prescribed by the MSRB is the Electronic Municipal Market Access system. Information regarding requirement for submissions to EMMA is available at <http://emma.msrb.org>.

The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 5 of this Disclosure Undertaking; provided that the audited financial statements of the District may be submitted, when and if available, separately from the balance of the relevant Annual Report. If the District does not have audited financial statements available when it submits the relevant Annual Report, it shall submit unaudited financial statements, as described in Section 5(a) below.

(b) Not later than 15 Business Days prior to the filing date required in paragraph (a) above for providing the Annual Report to the MSRB, the District shall provide the Annual Report to the Dissemination Agent (if other than the District). If the District is unable to provide to the MSRB an Annual Report by the date required in paragraph (a) above, the District shall send a notice to the MSRB in substantially the form attached as Exhibit A.

(c) The Dissemination Agent (if other than the District) shall:

- (i) determine each year prior to the date for providing the Annual Report the format for filing with the MSRB; and
- (ii) file a report with the District certifying that the Annual Report has been provided pursuant to this Disclosure Undertaking, stating the date it was provided to the MSRB.

SECTION 5. Content of Annual Report. The District's Annual Report shall contain or incorporate by reference the following:

(a) Audited financial statements of the District for the preceding fiscal year, prepared in conformity with generally accepted accounting principles as prescribed by the Governmental Accounting Standards Board and the American Institute of Certified Public Accountants. If audited financial information is not available by the time the Annual Report is required to be filed pursuant to Section 4(a) hereof, the financial information included in the Annual Report may be unaudited, and the District will provide audited financial information to the MSRB as soon as practical after it has been made available to the District.

(b) Operating data, including the following information with respect to the District's preceding fiscal year (to the extent not included in the audited financial statements described in paragraph (a) above):

- (i) State funding received by the District for the last completed fiscal year;

- (ii) Outstanding District indebtedness;
- (iii) Secured *ad valorem* tax delinquencies, if the County is no longer on the Teeter Plan;
- (iv) Full-time equivalent students, or equivalent information, as may be reasonably available;
- (v) Summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year; and
- (vi) Assessed valuations.

(c) Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the MSRB or to the Commission. If the document incorporated by reference is a final official statement, it must be available from the MSRB. The District shall clearly identify each other document so incorporated by reference.

#### SECTION 6. Reporting of Designated Listed Events.

(a) The District agrees to provide or cause to be provided to the MSRB notice of the occurrence of any of the following events with respect to the Bonds not later than ten (10) Business Days after the occurrence of the event:

- (i) Principal and interest payment delinquencies;
- (ii) Unscheduled draws on any debt service reserves reflecting financial difficulties;
- (iii) Unscheduled draws on any credit enhancements reflecting financial difficulties;
- (iv) Substitution of credit or liquidity providers, or their failure to perform;
- (v) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability or of a Notice of Proposed Issue (IRS Form 5701 TEB);
- (vi) Tender offers;
- (vii) Defeasances;
- (viii) Rating changes;
- (ix) Bankruptcy, insolvency, receivership or similar event of the District; or
- (x) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of a Financial Obligation of the District, any of which reflect financial difficulties.

For purposes of item (ix) above, the described event shall be deemed to occur when any of the following shall occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the United States Bankruptcy Code or in any other proceeding under state or federal law

in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or other governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority have supervision or jurisdiction over substantially all of the assets or business of the District.

(b) The District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material, not later than ten (10) business days after the occurrence of the event:

(i) Unless described in paragraph 6(a)(v) hereof, other material notices or determinations with respect to the tax status of the Bonds or other material events affecting the tax status of the Bonds;

(ii) Modifications to rights of Owners;

(iii) Optional, unscheduled or contingent Bond calls;

(iv) Release, substitution or sale of property securing repayment of the Bonds, if applicable;

(v) Non-payment related defaults;

(vi) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms;

(vii) Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent; or

(viii) Incurrence of a Financial Obligation, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation, any of which affect security holders.

(c) The District shall give, or cause to be given, in a timely manner, notice of a failure to provide the annual financial information on or before the date specified in Section 4 hereof, as provided in Section 4(b) hereof.

(d) If the District determines that the occurrence of a Listed Event described in Section 6(b) hereof is material under applicable federal security laws, the District shall within ten (10) business days of occurrence file a notice of such occurrence with the MSRB in electronic format, accompanied by such identifying information as is prescribed by the MSRB. Notwithstanding the foregoing, notice of the Listed Event described in subsections (a)(vii) or (b)(iii) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolutions.

SECTION 7. Termination of Reporting Obligation. The District's obligations under this Disclosure Undertaking shall terminate when the District is no longer an obligated person with respect to

the Bonds, as provided in the Rule, upon the defeasance, prior redemption or payment in full of all of the Bonds.

SECTION 8. Dissemination Agent. The Superintendent/President or Assistant Superintendent/Vice President for Business and Financial Affairs may, from time to time, appoint or engage an alternate or successor Dissemination Agent to assist in carrying out the District's obligations under this Disclosure Undertaking, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. If at any time there is no other designated Dissemination Agent in place, the District shall act as the Dissemination Agent.

The Dissemination Agent, if other than the District, shall be paid compensation for its services provided hereunder, and reimbursement for its costs and expenses. The Dissemination Agent shall not be responsible for the form or content of any document provided by the District hereunder.

SECTION 9. Amendment. Notwithstanding any other provision of this Disclosure Undertaking, the District may amend this Disclosure Undertaking under the following conditions, provided no amendment to this Disclosure Undertaking shall be made that affects the rights, duties or obligations of the Dissemination Agent without its written consent:

(a) The amendment may be made only in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of the obligated person, or type of business conducted;

(b) This Disclosure Undertaking, as amended, would have complied with the requirements of the Rule at the time of the primary offering of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment does not materially impair the interests of Holders, as determined either by parties unaffiliated with the District or another obligated person (such as the Bond Counsel) or by the written approval of the Bondholders; provided, that the Annual Report containing the amended operating data or financial information shall explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided.

SECTION 10. Additional Information. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Disclosure Undertaking, the District shall have no obligation under this Disclosure Undertaking to update such information or to include it in any future disclosure or notice of occurrence of a Designated Material Event.

Nothing in this Disclosure Undertaking shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Undertaking or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Designated Material Event, in addition to that which is required by this Disclosure Undertaking.

SECTION 11. Default. The District shall give notice to the MSRB of any failure to provide the Annual Report when the same is due hereunder, which notice shall be given prior to July 1 of that year. In the event of a failure of the District to comply with any provision of this Disclosure Undertaking, any Bondholder may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Undertaking. A default under this Disclosure Undertaking shall not be deemed an event of

default under the Resolutions, and the sole remedy under this Disclosure Undertaking in the event of any failure of the District to comply with this Disclosure Undertaking shall be an action to compel performance.

SECTION 12. Beneficiaries. This Disclosure Undertaking shall inure solely to the benefit of the District, the Dissemination Agent, the Underwriters and Holders from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Record Keeping. The District shall maintain records of all Annual Reports and notices of material Listed Events including the content of such disclosure, the names of the entities with whom the such disclosure were filed and the date of filing such disclosure.

SECTION 14. Governing Law. This Disclosure Undertaking shall be governed by the laws of the State of California, applicable to contracts made and performed in such State of California.

*[Remainder of page intentionally left blank.]*

IN WITNESS WHEREOF, Southwestern Community College District has executed this Continuing Disclosure Undertaking as of the date first set forth herein.

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By: \_\_\_\_\_  
Assistant Superintendent/Vice President for  
Business and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORIES OF FAILURE TO FILE ANNUAL REPORT**

Name of Issuer: Southwestern Community College District (San Diego County, California)

Name of Issues: \$46,000,000 Election of 2016, General Obligation Bonds, Series 2021C  
\$150,970,000 2021 General Obligation Refunding Bonds (Federally Taxable)

Date of Issuance: March 24, 2021

NOTICE IS HEREBY GIVEN that the above-named Issuer has not provided an Annual Report with respect to the above-named Bonds as required by Section 4(a) of the Disclosure Undertaking dated as of March 24, 2021. The Issuer anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

[ISSUER/DISSEMINATION AGENT]

By: \_\_\_\_\_

*In the opinion of Norton Rose Fulbright US LLP, Los Angeles, California, Bond Counsel, under existing statutes, regulations, rulings and court decisions, and subject to the matters described in "TAX MATTERS – Tax-Exempt Bonds" herein, interest on the Bonds (excluding the Series D Bond maturing on February 1, 2022) is excluded pursuant to section 103(a) of the Internal Revenue Code of 1986 from the gross income for the owners thereof for federal income tax purposes and is not included in computing the federal alternative minimum taxable income of the owners thereof. Interest on the Series D Bond maturing on February 1, 2022 (the "Federally Taxable Bonds") will be included in gross income for federal income purposes. See "TAX MATTERS – Taxable Bonds" herein. In the opinion of Bond Counsel, under existing law, interest on the Bonds is exempt from personal income taxes of the State of California.*



**\$257,620,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**

**\$73,620,000**  
**Election of 2008**  
**General Obligation Bonds**  
**Series 2021F**

**\$184,000,000**  
**Election of 2016**  
**General Obligation Bonds**  
**Series 2021D**

**Dated: Date of Delivery****Due: August 1, as shown on inside cover.**

The Southwestern Community College District (the "District") Election of 2008, General Obligation Bonds, Series 2021F (the "Series F Bonds" or the "Proposition R Bonds") were authorized at an election of the registered voters of the District held on November 4, 2008, at which the requisite 55% or more of the persons voting on the bond proposition ("Proposition R") voted to authorize the issuance and sale of \$389 million principal amount of general obligation bonds of the District (the "2008 Election"). The Series F Bonds are the sixth and final issuance of general obligation bonds of the District authorized at the 2008 Election.

The District's Election of 2016, General Obligation Bonds, Series 2021D (the "Series D Bonds" or the "Proposition Z Bonds") were authorized at an election of the registered voters of the District held on November 8, 2016, at which the requisite 55% or more of the persons voting on the bond proposition ("Proposition Z") voted to authorize the issuance and sale of \$400 million principal amount of general obligation bonds of the District (the "2016 Election"). The Series D Bonds are the fourth and final issuance of general obligation bonds of the District authorized at the 2016 Election.

The Proposition R Bonds and the Proposition Z Bonds (together, the "Bonds") are being issued under the laws of the State of California (the "State") and pursuant to a resolution of the Governing Board of the District, adopted on September 14, 2021. The Bonds are dated the date of delivery. The Bonds will mature on the dates and in the amounts and bear interest at the rates shown on the inside cover herein. The Bonds will be issued in denominations of \$5,000 principal amount or integral multiples thereof, and are payable as to principal amount or redemption price at the office of the San Diego County Treasurer-Tax Collector (the "Paying Agent"). The Bonds will be issued as current interest bonds. Interest on the Bonds is payable semiannually on February 1 and August 1 of each year, commencing February 1, 2022; except, however, principal of and interest on the Federally Taxable Bonds is payable upon maturity on February 1, 2022.

The Bonds are issued in fully registered form and, when delivered, will be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"). DTC will act as securities depository of the Bonds as described herein under the caption "THE BONDS – Book-Entry Only System."

**The Bonds are subject to redemption prior to maturity as described herein.** See "THE BONDS – Optional Redemption" and "– Mandatory Sinking Fund Redemption" herein.

The Bonds are general obligations of the District, secured and payable solely from *ad valorem* property taxes collected against taxable properties within the boundaries of the District. The Bonds are general obligations of the District only and are not obligations of San Diego County, the State of California or any of its other political subdivisions. The San Diego County Board of Supervisors has the power and is obligated to levy and collect *ad valorem* property taxes for each fiscal year upon the taxable property of the District in an amount at least sufficient, together with other moneys available for such purpose, to pay the principal of, and premium, if any, and interest on each Bond as the same becomes due and payable.

---

**MATURITY SCHEDULE**  
 On Inside Cover

---

**THIS COVER PAGE CONTAINS CERTAIN INFORMATION FOR QUICK REFERENCE ONLY. IT IS NOT A SUMMARY OF THIS ISSUE. INVESTORS MUST READ THE ENTIRE OFFICIAL STATEMENT TO OBTAIN INFORMATION ESSENTIAL TO THE MAKING OF AN INFORMED INVESTMENT DECISION.**

*The Bonds will be offered when, as and if issued and received by the Underwriter subject to the approval of legality by Norton Rose Fulbright US LLP, Los Angeles, Bond Counsel, and certain other conditions. Norton Rose Fulbright US LLP, Los Angeles is also acting as Disclosure Counsel for the issue. Certain legal matters will be passed upon for the Underwriter by its counsel, Nixon Peabody LLP, Los Angeles, California. It is anticipated that the Bonds will be available through the facilities of DTC on or about November 10, 2021.*

**MORGAN STANLEY****RBC CAPITAL MARKETS****MISCHLER FINANCIAL GROUP, INC.**

## MATURITY SCHEDULES

**\$73,620,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2008**  
**General Obligation Bonds**  
**Series 2021F**  
  
**\$20,050,000 Serial Bonds**

| <b><u>Maturity Date</u></b><br><b><u>(August 1)</u></b> | <b><u>Principal</u></b><br><b><u>Amount</u></b> | <b><u>Interest Rate</u></b> | <b><u>Yield</u></b> | <b><u>CUSIP<sup>†</sup></u></b><br><b><u>(845389)</u></b> |
|---------------------------------------------------------|-------------------------------------------------|-----------------------------|---------------------|-----------------------------------------------------------|
| 2023                                                    | \$810,000                                       | 4.000%                      | 0.180%              | NF8                                                       |
| 2024                                                    | 640,000                                         | 1.000                       | 0.240               | NG6                                                       |
| 2025                                                    | 655,000                                         | 4.000                       | 0.370               | NH4                                                       |
| 2026                                                    | 725,000                                         | 4.000                       | 0.500               | NJ0                                                       |
| 2027                                                    | 795,000                                         | 4.000                       | 0.660               | NK7                                                       |
| 2028                                                    | 865,000                                         | 4.000                       | 0.830               | NL5                                                       |
| 2029                                                    | 950,000                                         | 4.000                       | 0.970               | NM3                                                       |
| 2030                                                    | 1,025,000                                       | 4.000                       | 1.080               | NN1                                                       |
| 2031                                                    | 1,110,000                                       | 4.000                       | 1.150               | NP6                                                       |
| 2032                                                    | 1,195,000                                       | 4.000                       | 1.280 <sup>C</sup>  | NQ4                                                       |
| 2033                                                    | 1,290,000                                       | 4.000                       | 1.380 <sup>C</sup>  | NR2                                                       |
| 2034                                                    | 1,390,000                                       | 4.000                       | 1.480 <sup>C</sup>  | NS0                                                       |
| 2035                                                    | 1,485,000                                       | 4.000                       | 1.560 <sup>C</sup>  | NT8                                                       |
| 2036                                                    | 1,595,000                                       | 4.000                       | 1.640 <sup>C</sup>  | NU5                                                       |
| 2037                                                    | 1,705,000                                       | 4.000                       | 1.720 <sup>C</sup>  | NV3                                                       |
| 2038                                                    | 1,830,000                                       | 4.000                       | 1.750 <sup>C</sup>  | NW1                                                       |
| 2039                                                    | 1,985,000                                       | 4.000                       | 1.780 <sup>C</sup>  | NX9                                                       |

**\$53,570,000 – 2.500% Term Bonds due August 1, 2046 – Yield 2.680% CUSIP<sup>†</sup> 845389 NY7**

<sup>C</sup> Yield to optional redemption at par on August 1, 2031.

<sup>†</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein are provided by CUSIP Global Services, managed by S&P Global Market Intelligence on behalf of the American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

# MATURITY SCHEDULES

**\$184,000,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2016, General Obligation Bonds**  
**Series 2021D**

## \$110,390,000 Serial Bonds

| <b>Maturity Date</b><br>Federally Taxable<br>(February 1) | <b>Principal<br/>Amount</b> | <b>Interest<br/>Rate</b> | <b>Yield</b>       | <b>CUSIP<sup>†</sup><br/>(845389)</b> |
|-----------------------------------------------------------|-----------------------------|--------------------------|--------------------|---------------------------------------|
| 2022                                                      | \$8,630,000                 | 0.150%                   | 0.150%             | NZ4                                   |
| <b>Tax-Exempt<br/>(August 1)</b>                          |                             |                          |                    |                                       |
| 2023                                                      | \$6,725,000                 | 4.000%                   | 0.180%             | PA7                                   |
| 2024                                                      | 7,040,000                   | 4.000                    | 0.240              | PB5                                   |
| 2025                                                      | 1,230,000                   | 4.000                    | 0.370              | PC3                                   |
| 2026                                                      | 1,565,000                   | 4.000                    | 0.500              | PD1                                   |
| 2027                                                      | 1,925,000                   | 4.000                    | 0.660              | PE9                                   |
| 2028                                                      | 2,310,000                   | 4.000                    | 0.830              | PF6                                   |
| 2029                                                      | 2,725,000                   | 4.000                    | 0.970              | PG4                                   |
| 2030                                                      | 3,170,000                   | 4.000                    | 1.080              | PH2                                   |
| 2031                                                      | 3,645,000                   | 4.000                    | 1.150              | PJ8                                   |
| 2032                                                      | 4,150,000                   | 4.000                    | 1.280 <sup>C</sup> | PK5                                   |
| 2033                                                      | 4,690,000                   | 4.000                    | 1.380 <sup>C</sup> | PL3                                   |
| 2034                                                      | 5,270,000                   | 4.000                    | 1.480 <sup>C</sup> | PM1                                   |
| 2035                                                      | 5,885,000                   | 4.000                    | 1.560 <sup>C</sup> | PN9                                   |
| 2036                                                      | 6,545,000                   | 4.000                    | 1.640 <sup>C</sup> | PP4                                   |
| 2037                                                      | 7,250,000                   | 4.000                    | 1.720 <sup>C</sup> | PQ2                                   |
| 2038                                                      | 7,995,000                   | 3.000                    | 2.170 <sup>C</sup> | PR0                                   |
| 2039                                                      | 8,715,000                   | 3.000                    | 2.220 <sup>C</sup> | PS8                                   |
| 2040                                                      | 9,465,000                   | 3.000                    | 2.280 <sup>C</sup> | PT6                                   |
| 2041                                                      | 11,460,000                  | 3.000                    | 2.300 <sup>C</sup> | PU3                                   |

**\$73,610,000 – 4.000% Term Bonds due August 1, 2046 – Yield 2.080%<sup>C</sup> CUSIP<sup>†</sup> 845389 PV1**

<sup>C</sup> Yield to optional redemption at par on August 1, 2031.

<sup>†</sup> CUSIP is a registered trademark of the American Bankers Association. CUSIP data herein are provided by CUSIP Global Services, managed by S&P Global Market Intelligence on behalf of the American Bankers Association. This data is not intended to create a database and does not serve in any way as a substitute for the CUSIP Services. Neither the District nor the Underwriters take any responsibility for the accuracy of the CUSIP numbers, which are being provided for reference only. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities of the Bonds.

## APPENDIX D

### FORM OF CONTINUING DISCLOSURE UNDERTAKING

This Continuing Disclosure Undertaking (this “Disclosure Undertaking”) is executed and delivered by Southwestern Community College District (the “District”) as of November 10, 2021 in connection with the execution and delivery of its (i) Election of 2008, General Obligation Bonds, Series 2021F, and (ii) Election of 2016, General Obligation Bonds, Series 2021D (collectively, the “Bonds”). The Bonds are being issued pursuant to a Resolution adopted by the Governing Board of the District on September 14, 2021 (the “Resolution”). Capitalized terms used but not defined herein shall have the meanings ascribed thereto in the Resolution.

In consideration of the execution and delivery of the Bonds by the District and the purchase of such Bonds by the Underwriters described below, the District hereby covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Undertaking. This Disclosure Undertaking is being executed and delivered by the District for the benefit of the Bondholders and in order to assist the Participating Underwriters in complying with Rule 15c2-12(b)(5) (the “Rule”) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended.

SECTION 2. Additional Definitions. In addition to the above definitions and the definitions set forth in the Resolutions, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 4 and 5 of this Disclosure Undertaking.

“Bondholder” or “Holder” means any holder of the Bonds or any beneficial owner of the Bonds so long as they are immobilized with DTC.

“Commission” means the Securities and Exchange Commission.

“Dissemination Agent” shall mean KNN Public Finance or any alternate or successor dissemination agent, designated in writing by the Superintendent/President or the Assistant Superintendent/Vice President for Business and Financial Affairs (or otherwise by the District), which Dissemination Agent has evidenced its acceptance in writing.

“Financial Obligation” as used in this Disclosure Undertaking is defined in the Rule as (i) a debt obligation; (ii) derivative instrument entered into in connection with, or pledged as a security or a source of payment for, an existing or planned debt obligation; or (iii) guarantee of (i) or (ii). The term “Financial Obligation” shall not include municipal securities as to which a final official statement has been provided to the MSRB consistent with the Rule.

“Listed Event” means any of the events listed in Section 6 of this Disclosure Undertaking.

“MSRB” shall mean the Municipal Securities Rulemaking Board, through its Electronic Municipal Market Access (“EMMA”) website located at <http://emma.msrb.org>, or any other entity designated or authorized by the Commission.

“Participating Underwriters” shall mean Morgan Stanley & Co. LLC, RBC Capital Markets and Mischler Financial Group, Inc., as the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

SECTION 3. CUSIP Numbers and Final Official Statement. The CUSIP Numbers for the Bonds have been assigned. The Final Official Statement relating to the Bonds is dated October 20, 2021.

SECTION 4. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent (if other than the District), not later than nine months after the end of the District's fiscal year (currently ending June 30), commencing on or prior to March 31, 2022 with the report for the fiscal year ending June 30, 2021, to provide to the MSRB in a format prescribed by the MSRB, an Annual Report that is consistent with the requirements of Section 5 of this Disclosure Undertaking. As of the date of this Certificate, the format prescribed by the MSRB is the Electronic Municipal Market Access system. Information regarding requirement for submissions to EMMA is available at <http://emma.msrb.org>.

The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 5 of this Disclosure Undertaking; provided that the audited financial statements of the District may be submitted, when and if available, separately from the balance of the relevant Annual Report. If the District does not have audited financial statements available when it submits the relevant Annual Report, it shall submit unaudited financial statements, as described in Section 5(a) below.

(b) Not later than 15 Business Days prior to the filing date required in paragraph (a) above for providing the Annual Report to the MSRB, the District shall provide the Annual Report to the Dissemination Agent (if other than the District). If the District is unable to provide to the MSRB an Annual Report by the date required in paragraph (a) above, the District shall send a notice to the MSRB in substantially the form attached as Exhibit A.

(c) The Dissemination Agent (if other than the District) shall:

- (i) determine each year prior to the date for providing the Annual Report the format for filing with the MSRB; and
- (ii) file a report with the District certifying that the Annual Report has been provided pursuant to this Disclosure Undertaking, stating the date it was provided to the MSRB.

SECTION 5. Content of Annual Report. The District's Annual Report shall contain or incorporate by reference the following:

(a) Audited financial statements of the District for the preceding fiscal year, prepared in conformity with generally accepted accounting principles as prescribed by the Governmental Accounting Standards Board and the American Institute of Certified Public Accountants. If audited financial information is not available by the time the Annual Report is required to be filed pursuant to Section 4(a) hereof, the financial information included in the Annual Report may be unaudited, and the District will provide audited financial information to the MSRB as soon as practical after it has been made available to the District.

(b) Operating data, including the following information with respect to the District's preceding fiscal year (to the extent not included in the audited financial statements described in paragraph (a) above):

- (i) State funding received by the District for the last completed fiscal year;

- (ii) Outstanding District indebtedness;
- (iii) Secured *ad valorem* tax delinquencies, if the County is no longer on the Teeter Plan;
- (iv) Full-time equivalent students, or equivalent information, as may be reasonably available;
- (v) Summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year; and
- (vi) Assessed valuations.

(c) Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the MSRB or to the Commission. If the document incorporated by reference is a final official statement, it must be available from the MSRB. The District shall clearly identify each other document so incorporated by reference.

#### SECTION 6. Reporting of Designated Listed Events.

(a) The District agrees to provide or cause to be provided to the MSRB notice of the occurrence of any of the following events with respect to the Bonds not later than ten (10) Business Days after the occurrence of the event:

- (i) Principal and interest payment delinquencies;
- (ii) Unscheduled draws on any debt service reserves reflecting financial difficulties;
- (iii) Unscheduled draws on any credit enhancements reflecting financial difficulties;
- (iv) Substitution of credit or liquidity providers, or their failure to perform;
- (v) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability or of a Notice of Proposed Issue (IRS Form 5701 TEB);
- (vi) Tender offers;
- (vii) Defeasances;
- (viii) Rating changes;
- (ix) Bankruptcy, insolvency, receivership or similar event of the District; or
- (x) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of a Financial Obligation of the District, any of which reflect financial difficulties.

For purposes of item (ix) above, the described event shall be deemed to occur when any of the following shall occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the United States Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or

business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or other governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority have supervision or jurisdiction over substantially all of the assets or business of the District.

(b) The District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material, not later than ten (10) business days after the occurrence of the event:

(i) Unless described in paragraph 6(a)(v) hereof, other material notices or determinations with respect to the tax status of the Bonds or other material events affecting the tax status of the Bonds;

(ii) Modifications to rights of Owners;

(iii) Optional, unscheduled or contingent Bond calls;

(iv) Release, substitution or sale of property securing repayment of the Bonds, if applicable;

(v) Non-payment related defaults;

(vi) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms;

(vii) Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent; or

(viii) Incurrence of a Financial Obligation, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation, any of which affect security holders.

(c) The District shall give, or cause to be given, in a timely manner, notice of a failure to provide the annual financial information on or before the date specified in Section 4 hereof, as provided in Section 4(b) hereof.

(d) If the District determines that the occurrence of a Listed Event described in Section 6(b) hereof is material under applicable federal security laws, the District shall within ten (10) business days of occurrence file a notice of such occurrence with the MSRB in electronic format, accompanied by such identifying information as is prescribed by the MSRB. Notwithstanding the foregoing, notice of the Listed Event described in subsections (a)(vii) or (b)(iii) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolutions.

SECTION 7. Termination of Reporting Obligation. The District's obligations under this Disclosure Undertaking shall terminate when the District is no longer an obligated person with respect to the Bonds, as provided in the Rule, upon the defeasance, prior redemption or payment in full of all of the Bonds.

SECTION 8. Dissemination Agent. The Superintendent/President or Assistant Superintendent/Vice President for Business and Financial Affairs may, from time to time, appoint or engage an alternate or successor Dissemination Agent to assist in carrying out the District's obligations under this Disclosure Undertaking, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. If at any time there is no other designated Dissemination Agent in place, the District shall act as the Dissemination Agent.

The Dissemination Agent, if other than the District, shall be paid compensation for its services provided hereunder, and reimbursement for its costs and expenses. The Dissemination Agent shall not be responsible for the form or content of any document provided by the District hereunder.

SECTION 9. Amendment. Notwithstanding any other provision of this Disclosure Undertaking, the District may amend this Disclosure Undertaking under the following conditions, provided no amendment to this Disclosure Undertaking shall be made that affects the rights, duties or obligations of the Dissemination Agent without its written consent:

(a) The amendment may be made only in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of the obligated person, or type of business conducted;

(b) This Disclosure Undertaking, as amended, would have complied with the requirements of the Rule at the time of the primary offering of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment does not materially impair the interests of Holders, as determined either by parties unaffiliated with the District or another obligated person (such as the Bond Counsel) or by the written approval of the Bondholders; provided, that the Annual Report containing the amended operating data or financial information shall explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided.

SECTION 10. Additional Information. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Disclosure Undertaking, the District shall have no obligation under this Disclosure Undertaking to update such information or to include it in any future disclosure or notice of occurrence of a Designated Material Event.

Nothing in this Disclosure Undertaking shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Undertaking or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Designated Material Event, in addition to that which is required by this Disclosure Undertaking.

SECTION 11. Default. The District shall give notice to the MSRB of any failure to provide the Annual Report when the same is due hereunder, which notice shall be given prior to July 1 of that year. In the event of a failure of the District to comply with any provision of this Disclosure Undertaking, any Bondholder may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Undertaking. A default under this Disclosure Undertaking shall not be deemed an event of default under the Resolutions, and the sole remedy under this Disclosure Undertaking in the event of any failure of the District to comply with this Disclosure Undertaking shall be an action to compel performance.

SECTION 12. Beneficiaries. This Disclosure Undertaking shall inure solely to the benefit of the District, the Dissemination Agent, the Underwriters and Holders from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Record Keeping. The District shall maintain records of all Annual Reports and notices of material Listed Events including the content of such disclosure, the names of the entities with whom the such disclosure were filed and the date of filing such disclosure.

SECTION 14. Governing Law. This Disclosure Undertaking shall be governed by the laws of the State of California, applicable to contracts made and performed in such State of California.

*[Remainder of page intentionally left blank.]*

IN WITNESS WHEREOF, Southwestern Community College District has executed this Continuing Disclosure Undertaking as of the date first set forth herein.

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By: \_\_\_\_\_  
Assistant Superintendent/Vice President for  
Business and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORIES OF FAILURE TO FILE ANNUAL REPORT**

Name of Issuer: Southwestern Community College District (San Diego County, California)

Name of Issues: \$73,620,000 Election of 2008, General Obligation Bonds, Series 2021F  
\$184,000,000 Election of 2016, General Obligation Bonds, Series 2021D

Date of Issuance: November 10, 2021

NOTICE IS HEREBY GIVEN that the above-named Issuer has not provided an Annual Report with respect to the above-named Bonds as required by Section 4(a) of the Disclosure Undertaking dated as of November 10, 2021. The Issuer anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

[ISSUER/DISSEMINATION AGENT]

By: \_\_\_\_\_

*In the opinion of Norton Rose Fulbright US LLP, Los Angeles, California, Bond Counsel, under existing statutes, regulations, rulings and court decisions, and subject to the matters described in "TAX MATTERS" herein, interest on the Bonds is excluded pursuant to Section 103(a) of the Internal Revenue Code of 1986 from the gross income for the owners thereof for federal income tax purposes and is not included in computing the federal alternative minimum taxable income of the owners thereof who are individuals. In the opinion of Bond Counsel, under existing law, interest on the Bonds is exempt from personal income taxes of the State of California.*



**\$120,000,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2024,**  
**General Obligation Bonds,**  
**Series 2025A**

**Dated: Date of Delivery****Due: August 1, as shown on inside cover.**

The Southwestern Community College District (the "District") Election of 2024, General Obligation Bonds, Series 2025A (the "Bonds") were authorized at an election of the registered voters of the District held on November 5, 2024, at which the requisite 55% or more of the persons voting on the bond measure ("Measure SW") voted to authorize the issuance and sale of \$800 million principal amount of general obligation bonds of the District (the "2024 Election"). The Bonds are the first issuance of general obligation bonds of the District authorized at the 2024 Election. The Bonds are being issued to: (i) finance the construction, acquisition, furnishing and equipping of District facilities, (ii) pay a portion of the debt service on the Bonds, and (iii) pay certain costs of issuance associated with the issuance of the Bonds.

The Bonds are being issued under the laws of the State of California (the "State") and pursuant to a resolution of the Governing Board of the District, adopted on May 19, 2025. The Bonds are dated the date of delivery. The Bonds will mature on the dates and in the amounts and bear interest at the rates shown on the inside cover herein. The Bonds will be issued in denominations of \$5,000 principal amount or integral multiples thereof, and are payable as to principal amount or redemption price, if any, at the office of U.S. Bank Trust Company, National Association, as paying agent (the "Paying Agent"). The Bonds will be issued as current interest bonds. Interest on the Bonds is payable semiannually on February 1 and August 1 of each year, commencing February 1, 2026.

The Bonds are issued in fully registered form and, when delivered, will be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"). DTC will act as securities depository of the Bonds as described herein under the caption "THE BONDS – Book-Entry Only System."

**The Bonds are subject to redemption prior to maturity as described herein.** See "THE BONDS – Optional Redemption" and "–Mandatory Sinking Fund Redemption" herein.

The Bonds are general obligations of the District, secured and payable solely from *ad valorem* property taxes collected against taxable properties within the boundaries of the District. The Bonds are general obligations of the District only and are not obligations of San Diego County, the State of California or any of its other political subdivisions. The Board of Supervisors of San Diego County has the power and is obligated to levy and collect *ad valorem* property taxes for each fiscal year upon the taxable property of the District in an amount at least sufficient, together with other moneys available for such purpose, to pay the principal of, and premium, if any, and interest on each Bond as the same becomes due and payable.

---

**MATURITY SCHEDULE**  
**On Inside Cover**

---

**THIS COVER PAGE CONTAINS CERTAIN INFORMATION FOR QUICK REFERENCE ONLY. IT IS NOT A SUMMARY OF THIS ISSUE. INVESTORS MUST READ THE ENTIRE OFFICIAL STATEMENT TO OBTAIN INFORMATION ESSENTIAL TO THE MAKING OF AN INFORMED INVESTMENT DECISION.**

*The Bonds will be offered when, as and if issued and received by the Underwriters subject to the approval of legality by Norton Rose Fulbright US LLP, Los Angeles, Bond Counsel, and certain other conditions. Norton Rose Fulbright US LLP, Los Angeles is also acting as Disclosure Counsel for the issue. Certain matters will be passed on for the Underwriters by Jones Hall LLP, San Francisco, California. It is anticipated that the Bonds will be available through the facilities of DTC on or about August 5, 2025.*

**RAYMOND JAMES****RAMIREZ & CO., INC.**

Dated: July 22, 2025

## MATURITY SCHEDULE

**\$120,000,000**  
**SOUTHWESTERN COMMUNITY COLLEGE DISTRICT**  
**(San Diego County, California)**  
**Election of 2024,**  
**General Obligation Bonds,**  
**Series 2025A**

**\$58,075,000 Serial Bonds**

| <b>Maturity Date</b><br><b><u>(August 1)</u></b> | <b>Principal</b><br><b><u>Amount</u></b> | <b>Interest</b><br><b><u>Rate</u></b> | <b><u>Yield</u></b>  | <b>CUSIP<sup>(2)</sup></b><br><b><u>(845389)</u></b> |
|--------------------------------------------------|------------------------------------------|---------------------------------------|----------------------|------------------------------------------------------|
| 2027                                             | \$14,600,000                             | 5.250%                                | 2.220%               | PY5                                                  |
| 2028                                             | 16,170,000                               | 5.250                                 | 2.210                | PZ2                                                  |
| 2036                                             | 1,090,000                                | 5.000                                 | 3.390 <sup>(1)</sup> | QA6                                                  |
| 2037                                             | 1,310,000                                | 5.000                                 | 3.570 <sup>(1)</sup> | QB4                                                  |
| 2038                                             | 1,550,000                                | 5.000                                 | 3.750 <sup>(1)</sup> | QC2                                                  |
| 2039                                             | 1,805,000                                | 5.000                                 | 3.860 <sup>(1)</sup> | QD0                                                  |
| 2040                                             | 2,075,000                                | 5.000                                 | 3.980 <sup>(1)</sup> | QE8                                                  |
| 2041                                             | 2,370,000                                | 5.250                                 | 4.100 <sup>(1)</sup> | QF5                                                  |
| 2042                                             | 2,690,000                                | 5.250                                 | 4.220 <sup>(1)</sup> | QG3                                                  |
| 2043                                             | 3,030,000                                | 5.250                                 | 4.360 <sup>(1)</sup> | QH1                                                  |
| 2044                                             | 3,395,000                                | 5.250                                 | 4.440 <sup>(1)</sup> | QJ7                                                  |
| 2045                                             | 3,785,000                                | 5.250                                 | 4.490 <sup>(1)</sup> | QK4                                                  |
| 2046                                             | 4,205,000                                | 5.250                                 | 4.600 <sup>(1)</sup> | QN8                                                  |

**\$28,340,000 – 5.250% Term Bonds due August 1, 2051 – Yield 4.760%<sup>(1)</sup> CUSIP<sup>(2)</sup> 845389QL2**

**\$33,585,000 – 5.250% Term Bonds due August 1, 2055 – Yield 4.810%<sup>(1)</sup> CUSIP<sup>(2)</sup> 845389QM0**

---

<sup>(1)</sup> Yield to optional redemption at par on August 1, 2035.

<sup>(2)</sup> CUSIP® is a registered trademark of the American Bankers Association. CUSIP data herein are provided by CUSIP Global Services, managed by FactSet Research Systems Inc. on behalf of the American Bankers Association. CUSIP numbers have been assigned by an independent company and are included solely for the convenience of the holders of the Bonds. None of the District, the Underwriters or their agents or counsel assume responsibility for the accuracy of such numbers. The CUSIP number for a specific maturity is subject to being changed after the execution and delivery of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part of such maturity or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of the Bonds.

## APPENDIX D

### FORM OF CONTINUING DISCLOSURE UNDERTAKING

This Continuing Disclosure Undertaking (this “Disclosure Undertaking”) is executed and delivered by Southwestern Community College District (the “District”) as of August 5, 2025 in connection with the execution and delivery of its Election of 2024, General Obligation Bonds, Series 2025A (the “Bonds”). The Bonds are being issued pursuant to a Resolution adopted by the Governing Board of the District on May 19, 2025 (the “Resolution”). Capitalized terms used but not defined herein shall have the meanings ascribed thereto in the Resolution.

In consideration of the execution and delivery of the Bonds by the District and the purchase of such Bonds by the Participating Underwriters described below, the District hereby covenants and agrees as follows:

SECTION 1. Purpose of the Disclosure Undertaking. This Disclosure Undertaking is being executed and delivered by the District for the benefit of the Bondholders and in order to assist the Participating Underwriters in complying with Rule 15c2-12(b)(5) (the “Rule”) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended.

SECTION 2. Additional Definitions. In addition to the above definitions and the definitions set forth in the Resolution, the following capitalized terms shall have the following meanings:

“Annual Report” shall mean any Annual Report provided by the District pursuant to, and as described in, Sections 4 and 5 of this Disclosure Undertaking.

“Bondholder” or “Holder” means any holder of the Bonds or any beneficial owner of the Bonds so long as they are immobilized with DTC.

“Commission” means the Securities and Exchange Commission.

“Dissemination Agent” shall mean KNN Public Finance, LLC or any alternate or successor dissemination agent, designated in writing by the Superintendent/President or the Assistant Superintendent/Vice President, Business and Financial Affairs (or otherwise by the District), which Dissemination Agent has evidenced its acceptance in writing.

“Financial Obligation” as used in this Disclosure Undertaking is defined in the Rule as (i) a debt obligation; (ii) derivative instrument entered into in connection with, or pledged as a security or a source of payment for, an existing or planned debt obligation; or (iii) guarantee of (i) or (ii). The term “Financial Obligation” shall not include municipal securities as to which a final official statement has been provided to the MSRB consistent with the Rule.

“Listed Event” means any of the events listed in Section 6 of this Disclosure Undertaking.

“MSRB” shall mean the Municipal Securities Rulemaking Board, through its Electronic Municipal Market Access (“EMMA”) website located at <http://emma.msrb.org>, or any other entity designated or authorized by the Commission.

“Participating Underwriters” shall mean Raymond James & Associates, Inc. and Samuel A. Ramirez & Co., Inc., as the original underwriters of the Bonds required to comply with the Rule in connection with the offering of the Bonds.

SECTION 3. CUSIP Numbers and Final Official Statement. The CUSIP Numbers for the Bonds have been assigned. The Final Official Statement relating to the Bonds is dated July 22, 2025.

SECTION 4. Provision of Annual Reports.

(a) The District shall, or shall cause the Dissemination Agent (if other than the District), not later than nine months after the end of the District's fiscal year (currently ending June 30), commencing on or prior to March 31, 2026 with the report for the fiscal year ending June 30, 2025, to provide to the MSRB, in a format prescribed by the MSRB, an Annual Report that is consistent with the requirements of Section 5 of this Disclosure Undertaking. As of the date of this Certificate, the format prescribed by the MSRB is the Electronic Municipal Market Access system. Information regarding requirement for submissions to EMMA is available at <http://emma.msrb.org>.

The Annual Report may be submitted as a single document or as separate documents comprising a package, and may cross-reference other information as provided in Section 5 of this Disclosure Undertaking; provided that the audited financial statements of the District may be submitted, when and if available, separately from the balance of the relevant Annual Report. If the District does not have audited financial statements available when it submits the relevant Annual Report, it shall submit unaudited financial statements, as described in Section 5(a) below.

(b) Not later than 15 Business Days prior to the filing date required in paragraph (a) above for providing the Annual Report to the MSRB, the District shall provide the Annual Report to the Dissemination Agent (if other than the District). If the District is unable to provide to the MSRB an Annual Report by the date required in paragraph (a) above, the District shall send a notice to the MSRB in substantially the form attached as Exhibit A.

(c) The Dissemination Agent (if other than the District) shall:

- (i) determine each year prior to the date for providing the Annual Report the format for filing with the MSRB; and
- (ii) file a report with the District certifying that the Annual Report has been provided pursuant to this Disclosure Undertaking, stating the date it was provided to the MSRB.

SECTION 5. Content of Annual Report. The District's Annual Report shall contain or incorporate by reference the following:

(a) Audited financial statements of the District for the preceding fiscal year, prepared in conformity with generally accepted accounting principles as prescribed by the Governmental Accounting Standards Board and the American Institute of Certified Public Accountants. If audited financial information is not available by the time the Annual Report is required to be filed pursuant to Section 4(a) hereof, the financial information included in the Annual Report may be unaudited, and the District will provide audited financial information to the MSRB as soon as practical after it has been made available to the District.

(b) Operating data, including the following information with respect to the District's preceding fiscal year (to the extent not included in the audited financial statements described in paragraph (a) above):

- (i) State funding received by the District for the last completed fiscal year;

- (ii) Outstanding District indebtedness;
- (iii) Secured *ad valorem* tax delinquencies, if the County is no longer on the Teeter Plan;
- (iv) Full-time equivalent students, or equivalent information, as may be reasonably available;
- (v) Summary financial information on revenues, expenditures and fund balances for the District's general fund reflecting adopted budget for the current fiscal year; and
- (vi) Assessed valuations.

(c) Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues of the District or related public entities, which have been submitted to the MSRB or to the Commission. If the document incorporated by reference is a final official statement, it must be available from the MSRB. The District shall clearly identify each other document so incorporated by reference.

#### SECTION 6. Reporting of Designated Listed Events.

(a) The District agrees to provide or cause to be provided to the MSRB notice of the occurrence of any of the following events with respect to the Bonds not later than ten (10) Business Days after the occurrence of the event:

- (i) Principal and interest payment delinquencies;
- (ii) Unscheduled draws on any debt service reserves reflecting financial difficulties;
- (iii) Unscheduled draws on any credit enhancements reflecting financial difficulties;
- (iv) Substitution of credit or liquidity providers, or their failure to perform;
- (v) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability or of a Notice of Proposed Issue (IRS Form 5701 TEB);
- (vi) Tender offers;
- (vii) Defeasances;
- (viii) Rating changes;
- (ix) Bankruptcy, insolvency, receivership or similar event of the District; or
- (x) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of a Financial Obligation of the District, any of which reflect financial difficulties.

For purposes of item (ix) above, the described event shall be deemed to occur when any of the following shall occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the United States Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or

business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or other governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority have supervision or jurisdiction over substantially all of the assets or business of the District.

(b) The District shall give, or cause to be given, notice of the occurrence of any of the following events with respect to the Bonds, if material, not later than ten (10) business days after the occurrence of the event:

(i) Unless described in paragraph 6(a)(v) hereof, other material notices or determinations with respect to the tax status of the Bonds or other material events affecting the tax status of the Bonds;

(ii) Modifications to rights of Owners;

(iii) Optional, unscheduled or contingent Bond calls;

(iv) Release, substitution or sale of property securing repayment of the Bonds, if applicable;

(v) Non-payment related defaults;

(vi) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms;

(vii) Appointment of a successor or additional Paying Agent or the change of name of a Paying Agent; or

(viii) Incurrence of a Financial Obligation, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation, any of which affect security holders.

(c) The District shall give, or cause to be given, in a timely manner, notice of a failure to provide the annual financial information on or before the date specified in Section 4 hereof, as provided in Section 4(b) hereof.

(d) If the District determines that the occurrence of a Listed Event described in Section 6(b) hereof is material under applicable federal security laws, the District shall within ten (10) business days of occurrence file a notice of such occurrence with the MSRB in electronic format, accompanied by such identifying information as is prescribed by the MSRB. Notwithstanding the foregoing, notice of the Listed Event described in subsections (a)(vii) or (b)(iii) need not be given under this subsection any earlier than the notice (if any) of the underlying event is given to Holders of affected Bonds pursuant to the Resolution.

**SECTION 7. Termination of Reporting Obligation.** The District's obligations under this Disclosure Undertaking shall terminate when the District is no longer an obligated person with respect to the Bonds, as provided in the Rule, upon the defeasance, prior redemption or payment in full of all of the Bonds.

SECTION 8. Dissemination Agent. The Superintendent/President or Assistant Superintendent/Vice President, Business and Financial Affairs may, from time to time, appoint or engage an alternate or successor Dissemination Agent to assist in carrying out the District's obligations under this Disclosure Undertaking, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. If at any time there is no other designated Dissemination Agent in place, the District shall act as the Dissemination Agent.

The Dissemination Agent, if other than the District, shall be paid compensation for its services provided hereunder, and reimbursement for its costs and expenses. The Dissemination Agent shall not be responsible for the form or content of any document provided by the District hereunder.

SECTION 9. Amendment. Notwithstanding any other provision of this Disclosure Undertaking, the District may amend this Disclosure Undertaking under the following conditions, provided no amendment to this Disclosure Undertaking shall be made that affects the rights, duties or obligations of the Dissemination Agent without its written consent:

(a) The amendment may be made only in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of the obligated person, or type of business conducted;

(b) This Disclosure Undertaking, as amended, would have complied with the requirements of the Rule at the time of the primary offering of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment does not materially impair the interests of Holders, as determined either by parties unaffiliated with the District or another obligated person (such as the Bond Counsel) or by the written approval of the Bondholders; provided, that the Annual Report containing the amended operating data or financial information shall explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided.

SECTION 10. Additional Information. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Disclosure Undertaking, the District shall have no obligation under this Disclosure Undertaking to update such information or to include it in any future disclosure or notice of occurrence of a Designated Material Event.

Nothing in this Disclosure Undertaking shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Disclosure Undertaking or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Designated Material Event, in addition to that which is required by this Disclosure Undertaking.

SECTION 11. Default. The District shall give notice to the MSRB of any failure to provide the Annual Report when the same is due hereunder, which notice shall be given prior to July 1 of that year. In the event of a failure of the District to comply with any provision of this Disclosure Undertaking, any Bondholder may take such actions as may be necessary and appropriate, including seeking mandate or specific performance by court order, to cause the District to comply with its obligations under this Disclosure Undertaking. A default under this Disclosure Undertaking shall not be deemed an event of default under the Resolution, and the sole remedy under this Disclosure Undertaking in the event of any failure of the District to comply with this Disclosure Undertaking shall be an action to compel performance.

SECTION 12. Beneficiaries. This Disclosure Undertaking shall inure solely to the benefit of the District, the Dissemination Agent, the Participating Underwriters and Holders from time to time of the Bonds, and shall create no rights in any other person or entity.

SECTION 13. Record Keeping. The District shall maintain records of all Annual Reports and notices of material Listed Events including the content of such disclosure, the names of the entities with whom the such disclosure were filed and the date of filing such disclosure.

SECTION 14. Governing Law. This Disclosure Undertaking shall be governed by the laws of the State of California, applicable to contracts made and performed in such State of California.

*[Remainder of page intentionally left blank.]*

IN WITNESS WHEREOF, Southwestern Community College District has executed this Continuing Disclosure Undertaking as of the date first set forth herein.

SOUTHWESTERN COMMUNITY COLLEGE  
DISTRICT

By: \_\_\_\_\_  
Assistant Superintendent/Vice President, Business  
and Financial Affairs

**EXHIBIT A**

**NOTICE TO REPOSITORIES OF FAILURE TO FILE ANNUAL REPORT**

Name of Issuer: Southwestern Community College District (San Diego County, California)

Name of Issues: \$120,000,000 Election of 2024, General Obligation Bonds, Series 2025A

Date of Issuance: August 5, 2025

NOTICE IS HEREBY GIVEN that the above-named Issuer has not provided an Annual Report with respect to the above-named Bonds as required by Section 4(a) of the Disclosure Undertaking dated as of August 1, 2025. The Issuer anticipates that the Annual Report will be filed by \_\_\_\_\_.

Dated: \_\_\_\_\_

[ISSUER/DISSEMINATION AGENT]

By: \_\_\_\_\_